

STATE OF NEW YORK

3006--B

IN ASSEMBLY

January 22, 2025

A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read once and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to contracts for excellence; to amend the education law, in relation to foundation aid; to amend the education law, in relation to expenses of board of cooperative educational services; to amend the education law, in relation to aid for career education; to amend the education law, in relation to aid for the purchase of school library materials; to amend the education law, in relation to the establishment of a statewide dual enrollment policy; to amend the education law, in relation to allowable transportation expenses; to amend chapter 378 of the laws of 2010 amending the education law relating to paperwork reduction, in relation to the effectiveness thereof; to amend chapter 121 of the laws of 1996 authorizing the Roosevelt union free school district to finance deficits by the issuance of serial bonds, in relation to apportionment for salary expenses; to amend the education law, in relation to universal pre-kindergarten and the Statewide universal full-day pre-kindergarten program; to amend the education law, in relation to the apportionment of moneys for school aid; to amend chapter 756 of the laws of 1992 relating to funding a program for work force education conducted by the consortium for worker education in New York city, in relation to reimbursement for the 2025-2026 school year withholding a portion of employment preparation education aid and in relation to the effectiveness thereof; to amend the education law, in relation to maximum class sizes for special classes for certain students with disabilities; to amend chapter 82 of the laws of 1995 amending the education law and other laws relating to state aid to school districts and the appropriation of funds for the support of government, in relation to the effectiveness thereof; to amend chapter 537 of the laws of 1976, relating to paid, free and reduced price breakfast for eligible pupils in certain school districts, in relation to purchases of food products from New York state farmers, growers, producers or processors; providing for special appor-

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [] is old law to be omitted.

LBD12572-03-5

tionment for salary expenses; providing for special apportionment for public pension accruals; providing for set-asides from the state funds which certain districts are receiving from the total foundation aid; providing for support of public libraries; and to repeal certain provisions of the education law relating to calculation of school aid (Part A); to amend the education law, in relation to establishing a universal free school meals program; and to repeal section 925 of the education law relating to the community eligibility provision state subsidy (Part B); intentionally omitted (Part C); to amend the education law in relation to scholarships awarded to part-time students by the New York state higher education services corporation; to amend the education law, in relation to making conforming changes; to repeal section 666 of the education law, relating to tuition awards for part-time undergraduate students; and to repeal section 667-c-1 of the education law relating to the New York state part-time scholarship award program (Part D); to amend the education law, in relation to excelsior scholarship awarded to students by the New York state higher education services corporation (Part E); to amend the education law, in relation to creating a New York college access program (Part F); intentionally omitted (Part G); intentionally omitted (Part H); intentionally omitted (Part I); intentionally omitted (Part J); intentionally omitted (Part K); to amend the private housing finance law, in relation to reduction of taxes pursuant to shelter rent (Part L); intentionally omitted (Part M); to utilize reserves in the mortgage insurance fund for various housing purposes (Part N); intentionally omitted (Part O); to amend the social services law, in relation to certification of child care support centers to place substitute caregivers in licensed and registered child care programs (Part P); to amend the social services law, in relation to enacting the "Increasing Nutrition Support for Prenatal and Infant RESiliency ("INSPIRE") pilot program"(Part Q); to amend the social services law, in relation to increasing the standards of monthly need for aged, blind and disabled persons living in the community (Part R); to amend part W of chapter 54 of the laws of 2016 amending the social services law relating to the powers and duties of the commissioner of social services relating to the appointment of a temporary operator, in relation to the effectiveness thereof (Part S); intentionally omitted (Part T); intentionally omitted (Part U); intentionally omitted (Part V); intentionally omitted (Part W); to amend the labor law and the education law, in relation to digitizing the process by which minors apply for employment certificates or working papers; and to repeal certain provisions of the labor law relating thereto (Part X); to amend the veterans' services law, in relation to annuity to be paid to parents, spouses, and minor children of service members who died while on active duty; and requires the commissioner of veterans' services to conduct an outreach program for eligible recipients of such annuity (Part Y); intentionally omitted (Part Z); to require the submission of an annual report on the New York state museum (Part AA); to amend the real property law, in relation to establishing the homeowner protection program (Part BB); to amend the public housing law, in relation to establishing the housing access voucher program (Part CC); to amend the public housing law and the public authorities law, in relation to establishing the homeownership opportunity connection program (Part DD); to amend the social services law, in relation to increasing the amount certain individuals are eligible for when receiving enhanced residential care (Part EE); to amend the labor law,

in relation to decreasing the length of the suspension period applicable to certain striking workers who seek to obtain unemployment insurance benefits (Part FF); to amend the education law, in relation to the New York state district attorney and indigent legal services attorney loan forgiveness program (Part GG); to amend the education law, in relation to increasing the maximum income limits for the excelsior scholarship and tuition assistance program awards (Part HH); to amend the labor law, in relation to unemployment benefits based on employment with certain educational institutions; and to repeal certain provisions of such law relating thereto (Part II); to amend the social services law, in relation to prohibiting requiring parents or caretakers to earn a minimum wage to be eligible for child care assistance (Part JJ); to amend the social services law, in relation to implementing a cost estimation model for child care (Part KK); to amend the labor law, in relation to the determination of rates for unemployment insurance benefits (Part LL); to amend chapter 19 of the laws of 2020, authorizing the commissioner of education and the chancellor of the board of regents, with the approval of the board of regents, to appoint monitors to oversee the Hempstead union free school district, and authorizing the commissioner of education to appoint a monitor to oversee the Hempstead union free school district and establishing the powers and duties of such monitor, in relation to extending the effectiveness thereof; to amend part C of chapter 56 of the laws of 2020 directing the commissioner of education to appoint a monitor for the Rochester city school district, establishing the powers and duties of such monitor and certain other officers and relating to the apportionment of aid to such school district, in relation to extending the effectiveness thereof; and to amend chapter 18 of the laws of 2020 authorizing the commissioner of education to appoint a monitor to oversee the Wyandanch union free school district and establishing the powers and duties of such monitor, and authorizing deficit financing and an advance of aid payments for the Wyandanch union free school district, in relation to extending the effectiveness thereof (Part MM); and to amend the social services law, in relation to establishing the New York coalition for child care; and providing for the repeal of such provisions upon expiration thereof (Part NN)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act enacts into law major components of legislation
2 necessary to implement the state education, labor, housing and family
3 assistance budget for the 2025-2026 state fiscal year. Each component is
4 wholly contained within a Part identified as Parts A through NN. The
5 effective date for each particular provision contained within such Part
6 is set forth in the last section of such Part. Any provision in any
7 section contained within a Part, including the effective date of the
8 Part, which makes a reference to a section "of this act", when used in
9 connection with that particular component, shall be deemed to mean and
10 refer to the corresponding section of the Part in which it is found.
11 Section three of this act sets forth the general effective date of this
12 act.

13

PART A

1 Section 1. Paragraph e of subdivision 1 of section 211-d of the educa-
2 tion law, as amended by section 1 of part A of chapter 56 of the laws of
3 2024, is amended to read as follows:

4 e. Notwithstanding paragraphs a and b of this subdivision, a school
5 district that submitted a contract for excellence for the two thousand
6 eight--two thousand nine school year shall submit a contract for excel-
7 lence for the two thousand nine--two thousand ten school year in
8 conformity with the requirements of subparagraph (vi) of paragraph a of
9 subdivision two of this section unless all schools in the district are
10 identified as in good standing and provided further that, a school
11 district that submitted a contract for excellence for the two thousand
12 nine--two thousand ten school year, unless all schools in the district
13 are identified as in good standing, shall submit a contract for excel-
14 lence for the two thousand eleven--two thousand twelve school year which
15 shall, notwithstanding the requirements of subparagraph (vi) of para-
16 graph a of subdivision two of this section, provide for the expenditure
17 of an amount which shall be not less than the product of the amount
18 approved by the commissioner in the contract for excellence for the two
19 thousand nine--two thousand ten school year, multiplied by the
20 district's gap elimination adjustment percentage and provided further
21 that, a school district that submitted a contract for excellence for the
22 two thousand eleven--two thousand twelve school year, unless all schools
23 in the district are identified as in good standing, shall submit a
24 contract for excellence for the two thousand twelve--two thousand thir-
25 teen school year which shall, notwithstanding the requirements of
26 subparagraph (vi) of paragraph a of subdivision two of this section,
27 provide for the expenditure of an amount which shall be not less than
28 the amount approved by the commissioner in the contract for excellence
29 for the two thousand eleven--two thousand twelve school year and
30 provided further that, a school district that submitted a contract for
31 excellence for the two thousand twelve--two thousand thirteen school
32 year, unless all schools in the district are identified as in good
33 standing, shall submit a contract for excellence for the two thousand
34 thirteen--two thousand fourteen school year which shall, notwithstanding
35 the requirements of subparagraph (vi) of paragraph a of subdivision two
36 of this section, provide for the expenditure of an amount which shall be
37 not less than the amount approved by the commissioner in the contract
38 for excellence for the two thousand twelve--two thousand thirteen school
39 year and provided further that, a school district that submitted a
40 contract for excellence for the two thousand thirteen--two thousand
41 fourteen school year, unless all schools in the district are identified
42 as in good standing, shall submit a contract for excellence for the two
43 thousand fourteen--two thousand fifteen school year which shall,
44 notwithstanding the requirements of subparagraph (vi) of paragraph a of
45 subdivision two of this section, provide for the expenditure of an
46 amount which shall be not less than the amount approved by the commis-
47 sioner in the contract for excellence for the two thousand thirteen--two
48 thousand fourteen school year; and provided further that, a school
49 district that submitted a contract for excellence for the two thousand
50 fourteen--two thousand fifteen school year, unless all schools in the
51 district are identified as in good standing, shall submit a contract for
52 excellence for the two thousand fifteen--two thousand sixteen school
53 year which shall, notwithstanding the requirements of subparagraph (vi)
54 of paragraph a of subdivision two of this section, provide for the
55 expenditure of an amount which shall be not less than the amount
56 approved by the commissioner in the contract for excellence for the two

1 thousand fourteen--two thousand fifteen school year; and provided
2 further that a school district that submitted a contract for excellence
3 for the two thousand fifteen--two thousand sixteen school year, unless
4 all schools in the district are identified as in good standing, shall
5 submit a contract for excellence for the two thousand sixteen--two thou-
6 sand seventeen school year which shall, notwithstanding the requirements
7 of subparagraph (vi) of paragraph a of subdivision two of this section,
8 provide for the expenditure of an amount which shall be not less than
9 the amount approved by the commissioner in the contract for excellence
10 for the two thousand fifteen--two thousand sixteen school year; and
11 provided further that, a school district that submitted a contract for
12 excellence for the two thousand sixteen--two thousand seventeen school
13 year, unless all schools in the district are identified as in good
14 standing, shall submit a contract for excellence for the two thousand
15 seventeen--two thousand eighteen school year which shall, notwithstand-
16 ing the requirements of subparagraph (vi) of paragraph a of subdivision
17 two of this section, provide for the expenditure of an amount which
18 shall be not less than the amount approved by the commissioner in the
19 contract for excellence for the two thousand sixteen--two thousand
20 seventeen school year; and provided further that a school district that
21 submitted a contract for excellence for the two thousand seventeen--two
22 thousand eighteen school year, unless all schools in the district are
23 identified as in good standing, shall submit a contract for excellence
24 for the two thousand eighteen--two thousand nineteen school year which
25 shall, notwithstanding the requirements of subparagraph (vi) of para-
26 graph a of subdivision two of this section, provide for the expenditure
27 of an amount which shall be not less than the amount approved by the
28 commissioner in the contract for excellence for the two thousand seven-
29 teen--two thousand eighteen school year; and provided further that, a
30 school district that submitted a contract for excellence for the two
31 thousand eighteen--two thousand nineteen school year, unless all schools
32 in the district are identified as in good standing, shall submit a
33 contract for excellence for the two thousand nineteen--two thousand
34 twenty school year which shall, notwithstanding the requirements of
35 subparagraph (vi) of paragraph a of subdivision two of this section,
36 provide for the expenditure of an amount which shall be not less than
37 the amount approved by the commissioner in the contract for excellence
38 for the two thousand eighteen--two thousand nineteen school year; and
39 provided further that, a school district that submitted a contract for
40 excellence for the two thousand nineteen--two thousand twenty school
41 year, unless all schools in the district are identified as in good
42 standing, shall submit a contract for excellence for the two thousand
43 twenty--two thousand twenty-one school year which shall, notwithstanding
44 the requirements of subparagraph (vi) of paragraph a of subdivision two
45 of this section, provide for the expenditure of an amount which shall be
46 not less than the amount approved by the commissioner in the contract
47 for excellence for the two thousand nineteen--two thousand twenty school
48 year; and provided further that, a school district that submitted a
49 contract for excellence for the two thousand twenty--two thousand twen-
50 ty-one school year, unless all schools in the district are identified as
51 in good standing, shall submit a contract for excellence for the two
52 thousand twenty-one--two thousand twenty-two school year which shall,
53 notwithstanding the requirements of subparagraph (vi) of paragraph a of
54 subdivision two of this section, provide for the expenditure of an
55 amount which shall be not less than the amount approved by the commis-
56 sioner in the contract for excellence for the two thousand twenty--two

1 thousand twenty-one school year; and provided further that, a school
2 district that submitted a contract for excellence for the two thousand
3 twenty-one--two thousand twenty-two school year, unless all schools in
4 the district are identified as in good standing, shall submit a contract
5 for excellence for the two thousand twenty-two--two thousand twenty-
6 three school year which shall, notwithstanding the requirements of
7 subparagraph (vi) of paragraph a of subdivision two of this section,
8 provide for the expenditure of an amount which shall be not less than
9 the amount approved by the commissioner in the contract for excellence
10 for the two thousand twenty-one--two thousand twenty-two school year;
11 and provided further that, a school district that submitted a contract
12 for excellence for the two thousand twenty-two--two thousand twenty-
13 three school year, unless all schools in the district are identified as
14 in good standing, shall submit a contract for excellence for the two
15 thousand twenty-three--two thousand twenty-four school year which shall,
16 notwithstanding the requirements of subparagraph (vi) of paragraph a of
17 subdivision two of this section, provide for the expenditure of an
18 amount which shall be not less than the amount approved by the commis-
19 sioner in the contract for excellence for the two thousand twenty-two--
20 two thousand twenty-three school year; and provided further that, a
21 school district that submitted a contract for excellence for the two
22 thousand twenty-three--two thousand twenty-four school year, unless all
23 schools in the district are identified as in good standing, shall submit
24 a contract for excellence for the two thousand twenty-four--two thousand
25 twenty-five school year which shall, notwithstanding the requirements of
26 subparagraph (vi) of paragraph a of subdivision two of this section,
27 provide for the expenditure of an amount which shall be not less than
28 the amount approved by the commissioner in the contract for excellence
29 for the two thousand twenty-three--two thousand twenty-four school year;
30 and provided further that a school district that submitted a contract
31 for excellence for the two thousand twenty-four--two thousand twenty-
32 five school year, unless all schools in the district are identified as
33 in good standing, shall submit a contract for excellence for the two
34 thousand twenty-five--two thousand twenty-six school year which shall,
35 notwithstanding the requirements of subparagraph (vi) of paragraph a of
36 subdivision two of this section, provide for the expenditure of an
37 amount which shall be not less than the amount approved by the commis-
38 sioner in the contract for excellence for the two thousand twenty-four-
39 -two thousand twenty-five school year; provided, however, that, in a
40 city school district in a city having a population of one million or
41 more, notwithstanding the requirements of subparagraph (vi) of paragraph
42 a of subdivision two of this section, the contract for excellence shall
43 provide for the expenditure as set forth in subparagraph (v) of para-
44 graph a of subdivision two of this section. For purposes of this para-
45 graph, the "gap elimination adjustment percentage" shall be calculated
46 as the sum of one minus the quotient of the sum of the school district's
47 net gap elimination adjustment for two thousand ten--two thousand eleven
48 computed pursuant to chapter fifty-three of the laws of two thousand
49 ten, making appropriations for the support of government, plus the
50 school district's gap elimination adjustment for two thousand eleven--
51 two thousand twelve as computed pursuant to chapter fifty-three of the
52 laws of two thousand eleven, making appropriations for the support of
53 the local assistance budget, including support for general support for
54 public schools, divided by the total aid for adjustment computed pursu-
55 ant to chapter fifty-three of the laws of two thousand eleven, making
56 appropriations for the local assistance budget, including support for

1 general support for public schools. Provided, further, that such amount
2 shall be expended to support and maintain allowable programs and activ-
3 ities approved in the two thousand nine--two thousand ten school year or
4 to support new or expanded allowable programs and activities in the
5 current year.

6 § 2. Paragraph p of subdivision 1 of section 3602 of the education law
7 is REPEALED.

8 § 3. The opening paragraph and subparagraphs (i) and (ii) of paragraph
9 q of subdivision 1 of section 3602 of the education law, as amended by
10 section 16 of part YYY of chapter 59 of the laws of 2017, are amended to
11 read as follows:

12 "Poverty count" shall mean the sum of the product of the [~~lunch~~]
13 economically disadvantaged student count multiplied by sixty-five
14 percent, plus the product of the [~~census~~] SAIPE count multiplied by
15 sixty-five percent, where:

16 (i) [~~"Lunch"~~] "Economically disadvantaged student count" shall mean the
17 product of the public school enrollment of the school district on the
18 date enrollment was counted in accordance with this subdivision for the
19 base year multiplied by the three-year average [~~free and reduced price~~
20 ~~lunch percent~~] economically disadvantaged rate; and

21 (ii) [~~"Census"~~] "SAIPE count" shall mean the product of the public
22 school enrollment of the school district on the date enrollment was
23 counted in accordance with this subdivision for the base year multiplied
24 by the [~~census 2000 poverty~~] three-year average small area income and
25 poverty estimate rate.

26 § 4. Subparagraphs (iii), (iv) and (v) of paragraph q of subdivision 1
27 of section 3602 of the education law are REPEALED.

28 § 5. Paragraph kk of subdivision 1 of section 3602 of the education
29 law is REPEALED.

30 § 6. Paragraph ll of subdivision 1 of section 3602 of the education
31 law, as added by section 11-a of part A of chapter 56 of the laws of
32 2021, is redesignated subparagraph (iv) of paragraph q of such subdivi-
33 sion 1 and is amended to read as follows:

34 (iv) (1) "Economically disadvantaged count" shall be equal to the
35 unduplicated count of all children registered to receive educational
36 services in grades kindergarten through twelve, including children in
37 ungraded programs who participate in, or whose family participates in,
38 economic assistance programs, such as the free or reduced-price lunch
39 programs, Social Security Insurance, Supplemental Nutrition Assistance
40 Program, Foster Care, Refugee Assistance (cash or medical assistance),
41 Earned Income Tax Credit (EITC), Home Energy Assistance Program (HEAP),
42 Safety Net Assistance (SNA), Bureau of Indian Affairs (BIA), or Tempo-
43 rary Assistance for Needy Families (TANF).

44 (2) "Economically disadvantaged rate" shall mean the quotient arrived
45 at when dividing the economically disadvantaged count by public enroll-
46 ment as computed pursuant to subparagraph one of paragraph n of this
47 subdivision.

48 (3) "Three-year average economically disadvantaged rate" shall equal
49 the quotient of: (i) the sum of the economically disadvantaged count for
50 the school year prior to the base year, plus such number for the school
51 year two years prior to the base year, plus such number for the school
52 year three years prior to the base year; divided by (ii) the sum of
53 enrollment as computed pursuant to subparagraph one of paragraph n of
54 this subdivision [~~one of this section~~] for the school year prior to the
55 base year, plus such number for the school year two years prior to the

1 base year, plus such number for the school year three years prior to the
2 base year, [~~computed~~] rounded to four decimals [~~without rounding~~].

3 § 7. Paragraph mm of subdivision 1 of section 3602 of the education
4 law, as added by section 11-a of part A of chapter 56 of the laws of
5 2021, is redesignated subparagraph (iii) of paragraph q of such subdivi-
6 sion 1 and is amended to read as follows:

7 (iii) "Three-year average small area income and poverty estimate rate"
8 shall equal the quotient of: (i) the sum of the number of persons aged
9 five to seventeen within the school district, based on the small area
10 income and poverty estimates produced by the United States census
11 bureau, whose families had incomes below the poverty level for the
12 calendar year prior to the year in which the base year began, plus such
13 number for the calendar year two years prior to the year in which the
14 base year began, plus such number for the calendar year three years
15 prior to the year in which the base year began; divided by (ii) the sum
16 of the total number of persons aged five to seventeen within the school
17 district, based on such census bureau estimates, for the year prior to
18 the year in which the base year began, plus such total number for the
19 year two years prior to the year in which the base year began, plus such
20 total number for the year three years prior to the year in which the
21 base year began, [~~computed~~] rounded to four decimals [~~without rounding~~].

22 § 8. Subparagraph 2 of paragraph g of subdivision 3 of section 3602 of
23 the education law, as amended by section 13 of part B of chapter 57 of
24 the laws of 2008, is amended to read as follows:

25 (2) a value computed by subtracting from one the product obtained by
26 multiplying the combined wealth ratio by sixty-four hundredths, provided
27 however, that for the purpose of computing the state sharing ratio for
28 total foundation aid, the tier two value shall be computed by subtract-
29 ing from one the product obtained when multiplying the combined wealth
30 ratio by six hundred twenty-eight thousandths (0.628) and such values
31 shall be computed using the combined wealth ratio for total foundation
32 aid in place of the combined wealth ratio; or

33 § 9. The closing paragraph of subdivision 3 of section 3602 of the
34 education law, as amended by section 8 of part A of chapter 56 of the
35 laws of 2024, is amended to read as follows:

36 Such result shall be expressed as a decimal carried to three places
37 without rounding, but shall not be greater than ninety hundredths nor
38 less than zero, provided, however, that for the purpose of computing the
39 state sharing ratio for total foundation aid in the two thousand twen-
40 ty-four--two thousand twenty-five school year [~~and thereafter~~], such
41 result shall not be greater than ninety-one hundredths (0.91), and that
42 for the purpose of computing the state sharing ratio for total founda-
43 tion aid in the two thousand twenty-five--two thousand twenty-six school
44 year and thereafter, such result shall not be greater than ninety-three
45 hundredths (0.93).

46 § 10. Intentionally omitted.

47 § 10-a. Subdivision 4 of section 3602 of the education law is amended
48 by adding a new paragraph f to read as follows:

49 f. Foundation aid payable in the two thousand twenty-five--two thou-
50 sand twenty-six school year. Notwithstanding any provision of law to the
51 contrary, foundation aid payable in the two thousand twenty-five--two
52 thousand twenty-six school year shall equal the greater of total founda-
53 tion aid or the product of one and twenty-nine thousandths (1.029)
54 multiplied by the foundation aid base.

§ 10-b. Paragraph s of subdivision 1 of section 3602 of the education law, as amended by section 8 of part A of chapter 56 of the laws of 2022, is amended to read as follows:

s. "Extraordinary needs count" shall mean the sum of the product of the English language learner count multiplied by [~~fifty~~] sixty-five percent, plus, the poverty count and the sparsity count.

§ 10-c. Subparagraphs 2 and 4 of paragraph a of subdivision 4 of section 3602 of the education law, subparagraph 2 as amended by section 9-b of part CCC of chapter 59 of the laws of 2018 and subparagraph 4 as amended by section 3 of part A of chapter 56 of the laws of 2024, are amended to read as follows:

(2) The regional cost index shall reflect an analysis of labor market costs based on median salaries in professional occupations that require similar credentials to those of positions in the education field, but not including those occupations in the education field, provided that the regional cost indices (i) for the two thousand seven--two thousand eight school year [~~and thereafter~~] through the two thousand twenty-four--two thousand twenty-five school year shall be as follows:

Labor Force Region	Index
Capital District	1.124
Southern Tier	1.045
Western New York	1.091
Hudson Valley	1.314
Long Island/NYC	1.425
Finger Lakes	1.141
Central New York	1.103
Mohawk Valley	1.000
North Country	1.000

and (ii) for the two thousand twenty-five--two thousand twenty-six school year and thereafter shall be as follows:

<u>Labor Force Region</u>	<u>Index</u>
<u>Capital District</u>	<u>1.124</u>
<u>Southern Tier</u>	<u>1.103</u>
<u>Western New York</u>	<u>1.091</u>
<u>Hudson Valley</u>	<u>1.337</u>
<u>Long Island/NYC</u>	<u>1.452</u>
<u>Finger Lakes</u>	<u>1.141</u>
<u>Central New York</u>	<u>1.113</u>
<u>Mohawk Valley</u>	<u>1.023</u>
<u>North Country</u>	<u>1.000</u>

(4) The expected minimum local contribution shall equal the lesser of (i) the product of (A) the quotient arrived at when the selected actual valuation is divided by total wealth foundation pupil units, multiplied by (B) the product of the local tax factor, multiplied by the income wealth index, or (ii) the product of (A) the product of the foundation amount, the regional cost index, and the pupil need index, multiplied by (B) the positive difference, if any, of one minus the state sharing ratio for total foundation aid. The local tax factor shall be established by May first of each year by determining the product, computed to four decimal places without rounding, of ninety percent multiplied by the quotient of the sum of the statewide average tax rate as computed by the commissioner for the current year in accordance with the provisions of paragraph e of subdivision one of section thirty-six hundred nine-e of this part plus the statewide average tax rate computed by the commissioner for the base year in accordance with such provisions plus the statewide average tax rate computed by the commissioner for the year

1 prior to the base year in accordance with such provisions, divided by
2 three. The income wealth index shall be calculated pursuant to paragraph
3 d of subdivision three of this section, provided, however, that for the
4 purposes of computing the expected minimum local contribution the income
5 wealth index shall not be less than sixty-five percent (0.65) for the
6 two thousand twenty-four--two thousand twenty-five and prior school
7 years, forty-four percent (0.44) for the two thousand twenty-five--two
8 thousand twenty-six school year, twenty-two percent (0.22) for the two
9 thousand twenty-six--two thousand twenty-seven school year, and zero (0)
10 for aid payable in the two thousand twenty-seven--two thousand twenty-
11 eight school year and thereafter, and shall not be more than two hundred
12 percent (2.0). The selected actual valuation shall be calculated pursu-
13 ant to paragraph c of subdivision one of this section. Total wealth
14 foundation pupil units shall be calculated pursuant to paragraph h of
15 subdivision two of this section.

16 § 10-d. Paragraph b of subdivision 5 of section 1950 of the education
17 law, as amended by chapter 130 of the laws of 2022, is amended to read
18 as follows:

19 b. The cost of services herein referred to shall be the amount allo-
20 cated to each component school district by the board of cooperative
21 educational services to defray expenses of such board, including
22 approved expenses from the testing of potable water systems of occupied
23 school buildings under the board's jurisdiction as required pursuant to
24 section eleven hundred ten of the public health law provided that such
25 expenses for testing of potable water systems are not reimbursable from
26 another state or federal source, except that that part of the salary
27 paid any teacher, supervisor or other employee of the board of cooper-
28 ative educational services which is, (i) for the two thousand twenty-
29 four--two thousand twenty-five and prior school years, in excess of
30 thirty thousand dollars, (ii) for aid payable in the two thousand twen-
31 ty-five--two thousand twenty-six school year in excess of forty thousand
32 dollars, (iii) for aid payable in the two thousand twenty-six--two thou-
33 sand twenty-seven school year, in excess of fifty thousand dollars, (iv)
34 for aid payable in the two thousand twenty-seven--two thousand twenty-
35 eight school year and thereafter, in excess of sixty thousand dollars,
36 shall not be such an approved expense, and except also that administra-
37 tive and clerical expenses shall not exceed ten percent of the total
38 expenses for purposes of this computation. Any gifts, donations or
39 interest earned by the board of cooperative educational services or on
40 behalf of the board of cooperative educational services by the dormitory
41 authority or any other source shall not be deducted in determining the
42 cost of services allocated to each component school district. Any
43 payments made to a component school district by the board of cooperative
44 educational services pursuant to subdivision eleven of section six-p of
45 the general municipal law attributable to an approved cost of service
46 computed pursuant to this subdivision shall be deducted from the cost of
47 services allocated to such component school district. The expense of
48 transportation provided by the board of cooperative educational services
49 pursuant to paragraph q of subdivision four of this section shall be
50 eligible for aid apportioned pursuant to subdivision seven of section
51 thirty-six hundred two of this chapter and no board of cooperative
52 educational services transportation expense shall be an approved cost of
53 services for the computation of aid under this subdivision. Transporta-
54 tion expense pursuant to paragraph q of subdivision four of this section
55 shall be included in the computation of the ten percent limitation on
56 administrative and clerical expenses.

§ 10-e. Paragraph b of subdivision 10 of section 3602 of the education law, as amended by section 16 of part B of chapter 57 of the laws of 2007, is amended to read as follows:

b. (1) Aid for career education. There shall be apportioned to such city school districts and other school districts which were not components of a board of cooperative educational services in the base year for pupils in grades ~~ten~~ nine through twelve in attendance in career education programs as such programs are defined by the commissioner, subject for the purposes of this paragraph to the approval of the director of the budget, an amount for each such pupil to be computed by multiplying the career education aid ratio by three thousand nine hundred dollars. Such aid will be payable for weighted pupils attending career education programs operated by the school district and for weighted pupils for whom such school district contracts with boards of cooperative educational services to attend career education programs operated by a board of cooperative educational services.

(2) Weighted pupils for the purposes of this paragraph shall mean the sum of the product of the attendance of students in grade nine multiplied by the special services phase-in factor plus the attendance of students in grades ten through twelve in career education sequences in trade, industrial, technical, agricultural or health programs plus the product of sixteen hundredths multiplied by the sum of the product of the attendance of students in grade nine multiplied by the special services phase-in factor plus the attendance of students in grades ten through twelve in career education sequences in business and marketing as defined by the commissioner in regulations; provided that the special services phase-in factor shall be (i) for the two thousand twenty-five--two thousand twenty-six school year, thirty-three percent (0.33), (ii) for the two thousand twenty-six--two thousand twenty-seven school year, sixty-six percent (0.66), (iii) for the two thousand twenty-seven--two thousand twenty-eight school year and thereafter, one hundred percent (1.0).

(3) The career education aid ratio shall be computed by subtracting from one the product obtained by multiplying fifty-nine percent by the combined wealth ratio. This aid ratio shall be expressed as a decimal carried to three places without rounding, but not less than thirty-six percent.

(4) Any school district that receives aid pursuant to this paragraph shall be required to use such amount to support career education programs in the current year.

(5) A board of education which spends less than its local funds as defined by regulations of the commissioner for career education in the base year during the current year shall have its apportionment under this subdivision reduced in an amount equal to such deficiency in the current or a succeeding school year, provided however that the commissioner may waive such reduction upon determination that overall expenditures per pupil in support of career education programs were continued at a level equal to or greater than the level of such overall expenditures per pupil in the preceding school year.

§ 10-f. Subdivision 3 of section 711 of the education law, as amended by section 7 of part B of chapter 57 of the laws of 2007, is amended to read as follows:

3. No school district shall be required to purchase or otherwise acquire school library materials, the cost of which shall exceed an amount equal to the library materials factor multiplied by the sum of the public school district enrollment and the nonpublic school enroll-

ment in the base year as defined in subparagraphs two and three of paragraph n of subdivision one of section thirty-six hundred two of this chapter. For aid payable in the nineteen hundred ninety-eight--nineteen hundred ninety-nine school year, the library materials factor shall be four dollars. For aid payable in the two thousand seven--two thousand eight through the two thousand twenty-four--two thousand twenty-five school year [~~and thereafter~~], the library materials factor shall be six dollars and twenty-five cents. For aid payable in the two thousand twenty-five--two thousand twenty-six and thereafter, the library materials factor shall be eleven dollars and fifty cents.

§ 11. The education law is amended by adding a new section 319 to read as follows:

§ 319. Establishment of dual enrollment program policy. 1. For purposes of this section:

(a) "Dual enrollment program" means any program that is a partnership between at least one school and at least one institution of higher education that provides high school students with the opportunity to enroll in college courses and earn transferable college credit from the institution or institutions while completing high school graduation and diploma requirements.

(b) "School" means a charter school, a school district, or a board of cooperative educational services.

2. The commissioner shall adopt a statewide policy outlining the standards for dual enrollment programs in New York state and guidelines for participation and data reporting.

3. The policy established pursuant to subdivision two of this section shall require that schools and higher education institutions annually submit to the department data regarding participation in and outcomes of dual enrollment programs in a form and manner determined by the commissioner pursuant to subdivision five of this section. The department shall annually publish such data on its public website no later than January first in the school year following the school year for which the data is applicable.

4. The policy established pursuant to subdivision two of this section shall require that, by September first, two thousand twenty-six, all schools participating in a dual enrollment program shall submit to the department a partnership agreement with the institution or institutions of higher education with which they are partnered. Such partnership agreements shall establish the scope and terms of the dual enrollment program, as well as a protocol for collecting, sharing, and reporting any data required by the commissioner pursuant to this section. Partnership agreements shall be consistent with the policy adopted by the commissioner pursuant to subdivision two of this section, and shall contain such other provisions as may be required by the commissioner. The partnership agreements shall be updated and resubmitted no less than once every five years. The commissioner shall develop and make publicly available the required partnership agreement form for schools and higher education institutions no later than January first, two thousand twenty-six.

5. On or before January first, two thousand twenty-six, the commissioner, the chancellor of the state university of New York, the chancellor of the city university of New York, and the governor shall jointly establish data points to be submitted pursuant to this section.

§ 12. Intentionally omitted.

§ 12-a. Subdivision 4 of section 3627 of the education law, as amended by section 13-a of part A of chapter 56 of the laws of 2024, is amended to read as follows:

4. Notwithstanding any other provision of law to the contrary, any expenditures for transportation provided pursuant to this section in the two thousand thirteen--two thousand fourteen school year and thereafter and otherwise eligible for transportation aid pursuant to subdivision seven of section thirty-six hundred two of this article shall be considered approved transportation expenses eligible for transportation aid, provided further that for the two thousand thirteen--two thousand fourteen school year such aid shall be limited to eight million one hundred thousand dollars and for the two thousand fourteen--two thousand fifteen school year such aid shall be limited to the sum of twelve million six hundred thousand dollars plus the base amount and for the two thousand fifteen--two thousand sixteen school year through two thousand eighteen--two thousand nineteen school year such aid shall be limited to the sum of eighteen million eight hundred fifty thousand dollars plus the base amount and for the two thousand nineteen--two thousand twenty school year such aid shall be limited to the sum of nineteen million three hundred fifty thousand dollars plus the base amount and for the two thousand twenty--two thousand twenty-one school year such aid shall be limited to the sum of nineteen million eight hundred fifty thousand dollars plus the base amount and for the two thousand twenty-two--two thousand twenty-three school year such aid shall be limited to the sum of twenty-two million three hundred fifty thousand dollars plus the base amount and for the two thousand twenty-three--two thousand twenty-four school year such aid shall be limited to the sum of twenty-four million eight hundred fifty thousand dollars plus the base amount and for the two thousand twenty-four--two thousand twenty-five school year ~~[and thereafter]~~ such aid shall be limited to the sum of twenty-nine million eight hundred fifty thousand dollars plus the base amount and for the two thousand twenty-five--two thousand twenty-six school year and thereafter such aid shall be limited to the maximum amount of aid from the base year plus the product of (a) the maximum amount of aid under this subdivision from the base year, multiplied by (b) the product of two and one-half, further multiplied by (c) the positive difference of the personal income growth index as defined in paragraph bb of subdivision one of section thirty-six hundred two of this article less one. For purposes of this subdivision, "base amount" means the amount of transportation aid paid to the school district for expenditures incurred in the two thousand twelve--two thousand thirteen school year for transportation that would have been eligible for aid pursuant to this section had this section been in effect in such school year, except that subdivision six of this section shall be deemed not to have been in effect. And provided further that the school district shall continue to annually expend for the transportation described in subdivision one of this section at least the expenditures used for the base amount.

§ 12-b. Section 11 of chapter 378 of the laws of 2010 amending the education law relating to paperwork reduction, as amended by section 1 of item FF of subpart B of part XXX of chapter 58 of the laws of 2020, is amended to read as follows:

§ 11. This act shall take effect immediately; provided, however, that the commissioner of education shall promulgate any rules or regulations necessary to implement the provisions of this act on or before July 1, 2010; provided, further that if section ten of this act shall take effect after July 1, 2010 it shall be deemed to have been in full force

1 and effect on and after July 1, 2010; and provided further that section
2 ten of this act shall expire and be deemed repealed ~~[on]~~ June 30, ~~[2025]~~
3 ~~2030~~.

4 § 13. Paragraph i of subdivision 12 of section 3602 of the education
5 law, as amended by section 14 of part A of chapter 56 of the laws of
6 2024, is amended to read as follows:

7 i. For the two thousand twenty-one--two thousand twenty-two school
8 year through the two thousand ~~[twenty-four]~~ ~~twenty-five~~--two thousand
9 ~~[twenty-five]~~ ~~twenty-six~~ school year, each school district shall be
10 entitled to an apportionment equal to the amount set forth for such
11 school district as "ACADEMIC ENHANCEMENT" under the heading "2020-21
12 ESTIMATED AIDS" in the school aid computer listing produced by the
13 commissioner in support of the budget for the two thousand twenty--two
14 thousand twenty-one school year and entitled "SA202-1", and such appor-
15 tionment shall be deemed to satisfy the state obligation to provide an
16 apportionment pursuant to subdivision eight of section thirty-six
17 hundred forty-one of this article.

18 § 14. The opening paragraph of subdivision 16 of section 3602 of the
19 education law, as amended by section 15 of part A of chapter 56 of the
20 laws of 2024, is amended to read as follows:

21 Each school district shall be eligible to receive a high tax aid
22 apportionment in the two thousand eight--two thousand nine school year,
23 which shall equal the greater of (i) the sum of the tier 1 high tax aid
24 apportionment, the tier 2 high tax aid apportionment and the tier 3 high
25 tax aid apportionment or (ii) the product of the apportionment received
26 by the school district pursuant to this subdivision in the two thousand
27 seven--two thousand eight school year, multiplied by the due-minimum
28 factor, which shall equal, for districts with an alternate pupil wealth
29 ratio computed pursuant to paragraph b of subdivision three of this
30 section that is less than two, seventy percent (0.70), and for all other
31 districts, fifty percent (0.50). Each school district shall be eligible
32 to receive a high tax aid apportionment in the two thousand nine--two
33 thousand ten through two thousand twelve--two thousand thirteen school
34 years in the amount set forth for such school district as "HIGH TAX AID"
35 under the heading "2008-09 BASE YEAR AIDS" in the school aid computer
36 listing produced by the commissioner in support of the budget for the
37 two thousand nine--two thousand ten school year and entitled "SA0910".
38 Each school district shall be eligible to receive a high tax aid appor-
39 tionment in the two thousand thirteen--two thousand fourteen through two
40 thousand ~~[twenty-four]~~ ~~twenty-five~~--two thousand ~~[twenty-five]~~ ~~twenty-~~
41 ~~six~~ school year equal to the greater of (1) the amount set forth for
42 such school district as "HIGH TAX AID" under the heading "2008-09 BASE
43 YEAR AIDS" in the school aid computer listing produced by the commis-
44 sioner in support of the budget for the two thousand nine--two thousand
45 ten school year and entitled "SA0910" or (2) the amount set forth for
46 such school district as "HIGH TAX AID" under the heading "2013-14 ESTI-
47 MATED AIDS" in the school aid computer listing produced by the commis-
48 sioner in support of the executive budget for the 2013-14 fiscal year
49 and entitled "BT131-4".

50 § 14-a. Subdivision a of section 5 of chapter 121 of the laws of 1996
51 authorizing the Roosevelt union free school district to finance deficits
52 by the issuance of serial bonds, as amended by section 36-a of part A of
53 chapter 56 of the laws of 2024, is amended to read as follows:

54 a. Notwithstanding any other provisions of law, upon application to
55 the commissioner of education submitted not sooner than April first and
56 not later than June thirtieth of the applicable school year, the Roose-

1 velt union free school district shall be eligible to receive an appor-
 2 tionment pursuant to this chapter for salary expenses, including related
 3 benefits, incurred between April first and June thirtieth of such school
 4 year. Such apportionment shall not exceed: for the 1996-97 school year
 5 [~~through the 2024-25 school year~~] and thereafter, four million dollars
 6 (\$4,000,000)[~~; for the 2025-26 school year, three million dollars~~
 7 ~~(\$3,000,000); for the 2026-27 school year, two million dollars~~
 8 ~~(\$2,000,000); for the 2027-28 school year, one million dollars~~
 9 ~~(\$1,000,000); and for the 2028-29 school year, zero dollars]~~. Such
 10 annual application shall be made after the board of education has
 11 adopted a resolution to do so with the approval of the commissioner of
 12 education.

13 § 15. Subdivision 16 of section 3602-ee of the education law, as
 14 amended by section 18 of part A of chapter 56 of the laws of 2024, is
 15 amended to read as follows:

16 16. The authority of the department to administer the universal full-
 17 day pre-kindergarten program shall expire June thirtieth, two thousand
 18 [~~twenty-five~~] twenty-six; provided that the program shall continue and
 19 remain in full effect.

20 § 15-a. Subparagraph (i) of paragraph b of subdivision 10 of section
 21 3602-e of the education law, as amended by section 23-c of part A of
 22 chapter 56 of the laws of 2021, is amended to read as follows:

23 (i) "Selected aid per prekindergarten pupil" shall equal the greater
 24 of (A) the product of five-tenths and the school district's selected
 25 foundation aid for the current year, or (B) five thousand dollars
 26 (\$5,000), or (C) the aid per prekindergarten pupil calculated pursuant
 27 to this subdivision for the two thousand six-two thousand seven school
 28 year, based on data on file for the school aid computer listing produced
 29 by the commissioner in support of the enacted budget for the two thou-
 30 sand six--two thousand seven school year and entitled "SA060-7" [~~;~~
 31 ~~provided, however, that in the two thousand eight-two thousand nine~~
 32 ~~school year, a city school district in a city having a population of one~~
 33 ~~million inhabitants or more shall not be eligible to select aid per~~
 34 ~~prekindergarten pupil pursuant to clause (A) of this subparagraph];~~

35 § 15-b. Subdivision 20 of section 3602-e of the education law is
 36 amended by adding a new paragraph c to read as follows:

37 c. Two thousand twenty-five--two thousand twenty-six school year.

38 The universal prekindergarten expansion for the two thousand twenty-
 39 five--two thousand twenty-six school year shall be equal to the positive
 40 difference, if any, of the amount a district is eligible to receive
 41 under subparagraph (ix) of the opening paragraph of subdivision ten of
 42 this section for the base year, less the product of (i) the sum of (1)
 43 eligible half-day three-year-old prekindergarten pupils weighted at 0.5
 44 as defined in clause two of subparagraph (iii) of paragraph b of this
 45 subdivision, plus (2) eligible full-day three-year-old prekindergarten
 46 pupils as defined in clause two of subparagraph (ii) of paragraph b of
 47 this subdivision, plus (3) eligible half-day four-year-old prekindergar-
 48 ten pupils weighted at 0.5 as defined in clause one of subparagraph
 49 (iii) of paragraph b of this subdivision, plus (4) eligible full-day
 50 four-year-old prekindergarten pupils as defined in clause one of subpar-
 51 agraph (ii) of paragraph b of this subdivision, multiplied by (ii) ten
 52 thousand dollars (\$10,000).

53 § 16. Intentionally omitted.

54 § 17. The opening paragraph of section 3609-a of the education law, as
 55 amended by section 23 of part A of chapter 56 of the laws of 2024, is
 56 amended to read as follows:

1 For aid payable in the two thousand seven--two thousand eight school
2 year through the two thousand [~~twenty-four~~] ~~twenty-five~~--two thousand
3 [~~twenty-five~~] ~~twenty-six~~ school year, "moneys apportioned" shall mean
4 the lesser of (i) the sum of one hundred percent of the respective
5 amount set forth for each school district as payable pursuant to this
6 section in the school aid computer listing for the current year produced
7 by the commissioner in support of the budget which includes the appro-
8 priation for the general support for public schools for the prescribed
9 payments and individualized payments due prior to April first for the
10 current year plus the apportionment payable during the current school
11 year pursuant to subdivision six-a and subdivision fifteen of section
12 thirty-six hundred two of this part minus any reductions to current year
13 aids pursuant to subdivision seven of section thirty-six hundred four of
14 this part or any deduction from apportionment payable pursuant to this
15 chapter for collection of a school district basic contribution as
16 defined in subdivision eight of section forty-four hundred one of this
17 chapter, less any grants provided pursuant to subparagraph two-a of
18 paragraph b of subdivision four of section ninety-two-c of the state
19 finance law, less any grants provided pursuant to subdivision five of
20 section ninety-seven-nnnn of the state finance law, less any grants
21 provided pursuant to subdivision twelve of section thirty-six hundred
22 forty-one of this article, or (ii) the apportionment calculated by the
23 commissioner based on data on file at the time the payment is processed;
24 provided however, that for the purposes of any payments made pursuant to
25 this section prior to the first business day of June of the current
26 year, moneys apportioned shall not include any aids payable pursuant to
27 subdivisions six and fourteen, if applicable, of section thirty-six
28 hundred two of this part as current year aid for debt service on bond
29 anticipation notes and/or bonds first issued in the current year or any
30 aids payable for full-day kindergarten for the current year pursuant to
31 subdivision nine of section thirty-six hundred two of this part. The
32 definitions of "base year" and "current year" as set forth in subdivi-
33 sion one of section thirty-six hundred two of this part shall apply to
34 this section. For aid payable in the two thousand [~~twenty-four~~] ~~twenty-~~
35 ~~five~~--two thousand [~~twenty-five~~] ~~twenty-six~~ school year, reference to
36 such "school aid computer listing for the current year" shall mean the
37 printouts entitled [~~"SA242-5"~~] ~~"SA252-6"~~.

38 § 18. Subdivision b of section 2 of chapter 756 of the laws of 1992,
39 relating to funding a program for work force education conducted by the
40 consortium for worker education in New York city, as amended by section
41 27 of part A of chapter 56 of the laws of 2024, is amended to read as
42 follows:

43 b. Reimbursement for programs approved in accordance with subdivision
44 a of this section for the reimbursement for the 2018--2019 school year
45 shall not exceed 59.4 percent of the lesser of such approvable costs per
46 contact hour or fourteen dollars and ninety-five cents per contact hour,
47 reimbursement for the 2019--2020 school year shall not exceed 57.7
48 percent of the lesser of such approvable costs per contact hour or
49 fifteen dollars sixty cents per contact hour, reimbursement for the
50 2020--2021 school year shall not exceed 56.9 percent of the lesser of
51 such approvable costs per contact hour or sixteen dollars and twenty-
52 five cents per contact hour, reimbursement for the 2021--2022 school
53 year shall not exceed 56.0 percent of the lesser of such approvable
54 costs per contact hour or sixteen dollars and forty cents per contact
55 hour, reimbursement for the 2022--2023 school year shall not exceed 55.7
56 percent of the lesser of such approvable costs per contact hour or

1 sixteen dollars and sixty cents per contact hour, reimbursement for the
2 2023--2024 school year shall not exceed 54.7 percent of the lesser of
3 such approvable costs per contact hour or seventeen dollars and seventy
4 cents per contact hour, ~~[and]~~ reimbursement for the 2024--2025 school
5 year shall not exceed 56.6 percent of the lesser of such approvable
6 costs per contact hour or eighteen dollars and seventy cents per contact
7 hour, and reimbursement for the 2025--2026 school year shall not exceed
8 58.2 percent of the lesser of such approvable costs per contact hour or
9 nineteen dollars and fifty-five cents per contact hour, and where a
10 contact hour represents sixty minutes of instruction services provided
11 to an eligible adult. Notwithstanding any other provision of law to the
12 contrary, for the 2018--2019 school year such contact hours shall not
13 exceed one million four hundred sixty-three thousand nine hundred
14 sixty-three (1,463,963); for the 2019--2020 school year such contact
15 hours shall not exceed one million four hundred forty-four thousand four
16 hundred forty-four (1,444,444); for the 2020--2021 school year such
17 contact hours shall not exceed one million four hundred six thousand
18 nine hundred twenty-six (1,406,926); for the 2021--2022 school year such
19 contact hours shall not exceed one million four hundred sixteen thousand
20 one hundred twenty-two (1,416,122); for the 2022--2023 school year such
21 contact hours shall not exceed one million four hundred six thousand
22 nine hundred twenty-six (1,406,926); for the 2023--2024 school year such
23 contact hours shall not exceed one million three hundred forty-two thou-
24 sand nine hundred seventy-five (1,342,975); ~~[and]~~ for the 2024--2025
25 school year such contact hours shall not exceed one million two hundred
26 twenty-eight thousand seven hundred thirty-three (1,228,733); and for
27 the 2025--2026 school year such contact hours shall not exceed one
28 million one hundred forty-three thousand three hundred fifty-nine
29 (1,143,359). Notwithstanding any other provision of law to the contra-
30 ry, the apportionment calculated for the city school district of the
31 city of New York pursuant to subdivision 11 of section 3602 of the
32 education law shall be computed as if such contact hours provided by the
33 consortium for worker education, not to exceed the contact hours set
34 forth herein, were eligible for aid in accordance with the provisions of
35 such subdivision 11 of section 3602 of the education law.

36 § 19. Section 4 of chapter 756 of the laws of 1992, relating to fund-
37 ing a program for work force education conducted by the consortium for
38 worker education in New York city, is amended by adding a new subdivi-
39 sion dd to read as follows:

40 dd. The provisions of this subdivision shall not apply after the
41 completion of payments for the 2025--2026 school year. Notwithstanding
42 any inconsistent provisions of law, the commissioner of education shall
43 withhold a portion of employment preparation education aid due to the
44 city school district of the city of New York to support a portion of the
45 costs of the work force education program. Such moneys shall be credited
46 to the elementary and secondary education fund-local assistance account
47 and shall not exceed thirteen million dollars (\$13,000,000).

48 § 20. Section 6 of chapter 756 of the laws of 1992, relating to fund-
49 ing a program for work force education conducted by the consortium for
50 worker education in New York city, as amended by section 29 of part A of
51 chapter 56 of the laws of 2024, is amended to read as follows:

52 § 6. This act shall take effect July 1, 1992, and shall be deemed
53 repealed June 30, ~~[2025]~~ 2026.

54 § 21. Subdivision 6 of section 4402 of the education law, as amended
55 by section 25 of part A of chapter 56 of the laws of 2024, is amended to
56 read as follows:

6. Notwithstanding any other law, rule or regulation to the contrary, the board of education of a city school district with a population of one hundred twenty-five thousand or more inhabitants shall be permitted to establish maximum class sizes for special classes for certain students with disabilities in accordance with the provisions of this subdivision. For the purpose of obtaining relief from any adverse fiscal impact from under-utilization of special education resources due to low student attendance in special education classes at the middle and secondary level as determined by the commissioner, such boards of education shall, during the school years nineteen hundred ninety-five--ninety-six through June thirtieth, two thousand [~~twenty-five~~] ~~twenty-six~~, be authorized to increase class sizes in special classes containing students with disabilities whose age ranges are equivalent to those of students in middle and secondary schools as defined by the commissioner for purposes of this section by up to but not to exceed one and two tenths times the applicable maximum class size specified in regulations of the commissioner rounded up to the nearest whole number, provided that in a city school district having a population of one million or more, classes that have a maximum class size of fifteen may be increased by no more than one student and provided that the projected average class size shall not exceed the maximum specified in the applicable regulation, provided that such authorization shall terminate on June thirtieth, two thousand. Such authorization shall be granted upon filing of a notice by such a board of education with the commissioner stating the board's intention to increase such class sizes and a certification that the board will conduct a study of attendance problems at the secondary level and will implement a corrective action plan to increase the rate of attendance of students in such classes to at least the rate for students attending regular education classes in secondary schools of the district. Such corrective action plan shall be submitted for approval by the commissioner by a date during the school year in which such board increases class sizes as provided pursuant to this subdivision to be prescribed by the commissioner. Upon at least thirty days notice to the board of education, after conclusion of the school year in which such board increases class sizes as provided pursuant to this subdivision, the commissioner shall be authorized to terminate such authorization upon a finding that the board has failed to develop or implement an approved corrective action plan.

§ 22. Subdivisions 22 and 24 of section 140 of chapter 82 of the laws of 1995, amending the education law and other laws relating to state aid to school districts and the appropriation of funds for the support of government, as amended by section 26 of part A of chapter 56 of the laws of 2024, are amended to read as follows:

(22) sections one hundred twelve, one hundred thirteen, one hundred fourteen, one hundred fifteen and one hundred sixteen of this act shall take effect on July 1, 1995; provided, however, that section one hundred thirteen of this act shall remain in full force and effect until July 1, [~~2025~~] ~~2026~~ at which time it shall be deemed repealed;

(24) sections one hundred eighteen through one hundred thirty of this act shall be deemed to have been in full force and effect on and after July 1, 1995; provided further, however, that the amendments made pursuant to section one hundred twenty-four of this act shall be deemed to be repealed on and after July 1, [~~2025~~] ~~2026~~;

§ 22-a. Subdivisions b and c of section 5 of chapter 537 of the laws of 1976, relating to paid, free and reduced price breakfast for eligible pupils in certain school districts, subdivision b as amended by section

1 32-a of part A of chapter 56 of the laws of 2024 and subdivision c as
2 amended by section 22-b of part A of chapter 56 of the laws of 2022, are
3 amended to read as follows:

4 b. Notwithstanding any monetary limitations with respect to school
5 lunch programs contained in any law or regulation, for school lunch
6 meals served in the school year commencing July 1, 2022 and each July 1
7 thereafter, a school food authority shall be eligible for a State subsi-
8 dy equal to \$0.1901 per free and paid school lunch meal, and \$0.0519 per
9 reduced-price lunch meal, for any school lunch meal served by such
10 school food authority; provided that the school food authority certifies
11 to the Department of Agriculture and Markets through the application
12 submitted pursuant to subdivision c of this section that such food
13 authority has purchased at least thirty percent of its total cost of
14 food products for its school lunch service program from New York state
15 farmers, growers, producers or processors in the preceding school year.
16 Commencing July 1, 2025, and each July 1 thereafter, a school food
17 authority shall be allowed to attribute moneys spent on purchases of
18 food products from New York state farmers, growers, producers or proces-
19 sors made for its school breakfast or snack programs to the thirty
20 percent of costs for school breakfast and lunch service programs.

21 c. The Department of Agriculture and Markets in cooperation with the
22 State Education Department, shall develop an application for school food
23 authorities to seek an additional State subsidy pursuant to this section
24 in a timeline and format prescribed by the commissioner of agriculture
25 and markets. Such application shall include, but not be limited to,
26 documentation demonstrating the school food authority's total food
27 purchases for its school breakfast, snack, and lunch service program,
28 and documentation demonstrating its total food purchases and percentages
29 for such program, permitted to be counted under this section, from New
30 York State farmers, growers, producers or processors in the preceding
31 school year. The application shall also include an attestation from the
32 school food authority's chief operating officer that it purchased at
33 least thirty percent of its total cost of food products, permitted to be
34 counted under this section, for its school breakfast, snack, and lunch
35 service program from New York State farmers, growers, producers or
36 processors in the preceding school year in order to meet the require-
37 ments for this additional State subsidy. School food authorities shall
38 be required to annually apply for this subsidy. After reviewing school
39 food authorities' completed applications for an additional State subsidy
40 pursuant to this section, the Department of Agriculture and Markets
41 shall certify to the State Education Department the school food authori-
42 ties approved for such additional State subsidy and the State Education
43 Department shall pay such additional State subsidy to such school food
44 authorities.

45 § 23. Special apportionment for salary expenses. 1. Notwithstanding
46 any other provision of law, upon application to the commissioner of
47 education, not sooner than the first day of the second full business
48 week of June 2026 and not later than the last day of the third full
49 business week of June 2026, a school district eligible for an apportion-
50 ment pursuant to section 3602 of the education law shall be eligible to
51 receive an apportionment pursuant to this section, for the school year
52 ending June 30, 2026, for salary expenses incurred between April 1 and
53 June 30, 2025 and such apportionment shall not exceed the sum of (a) the
54 deficit reduction assessment of 1990--1991 as determined by the commis-
55 sioner of education, pursuant to paragraph f of subdivision 1 of section
56 3602 of the education law, as in effect through June 30, 1993, plus (b)

1 186 percent of such amount for a city school district in a city with a
2 population in excess of 1,000,000 inhabitants, plus (c) 209 percent of
3 such amount for a city school district in a city with a population of
4 more than 195,000 inhabitants and less than 219,000 inhabitants accord-
5 ing to the latest federal census, plus (d) the net gap elimination
6 adjustment for 2010--2011, as determined by the commissioner of educa-
7 tion pursuant to chapter 53 of the laws of 2010, plus (e) the gap elimi-
8 nation adjustment for 2011--2012 as determined by the commissioner of
9 education pursuant to subdivision 17 of section 3602 of the education
10 law, and provided further that such apportionment shall not exceed such
11 salary expenses. Such application shall be made by a school district,
12 after the board of education or trustees have adopted a resolution to do
13 so and in the case of a city school district in a city with a population
14 in excess of 125,000 inhabitants, with the approval of the mayor of such
15 city.

16 2. The claim for an apportionment to be paid to a school district
17 pursuant to subdivision 1 of this section shall be submitted to the
18 commissioner of education on a form prescribed for such purpose, and
19 shall be payable upon determination by such commissioner that the form
20 has been submitted as prescribed. Such approved amounts shall be payable
21 on the same day in September of the school year following the year in
22 which application was made as funds provided pursuant to subparagraph 4
23 of paragraph b of subdivision 4 of section 92-c of the state finance
24 law, on the audit and warrant of the state comptroller on vouchers
25 certified or approved by the commissioner of education in the manner
26 prescribed by law from moneys in the state lottery fund and from the
27 general fund to the extent that the amount paid to a school district
28 pursuant to this section exceeds the amount, if any, due such school
29 district pursuant to subparagraph 2 of paragraph a of subdivision 1 of
30 section 3609-a of the education law in the school year following the
31 year in which application was made.

32 3. Notwithstanding the provisions of section 3609-a of the education
33 law, an amount equal to the amount paid to a school district pursuant to
34 subdivisions 1 and 2 of this section shall first be deducted from the
35 following payments due the school district during the school year
36 following the year in which application was made pursuant to subpara-
37 graphs 1, 2, 3, 4 and 5 of paragraph a of subdivision 1 of section
38 3609-a of the education law in the following order: the lottery appor-
39 tionment payable pursuant to subparagraph 2 of such paragraph followed
40 by the fixed fall payments payable pursuant to subparagraph 4 of such
41 paragraph and then followed by the district's payments to the teachers'
42 retirement system pursuant to subparagraph 1 of such paragraph, and any
43 remainder to be deducted from the individualized payments due the
44 district pursuant to paragraph b of such subdivision shall be deducted
45 on a chronological basis starting with the earliest payment due the
46 district.

47 § 24. Special apportionment for public pension accruals. 1. Notwith-
48 standing any other provision of law, upon application to the commission-
49 er of education, not later than June 30, 2026, a school district eligi-
50 ble for an apportionment pursuant to section 3602 of the education law
51 shall be eligible to receive an apportionment pursuant to this section,
52 for the school year ending June 30, 2026 and such apportionment shall
53 not exceed the additional accruals required to be made by school
54 districts in the 2004--2005 and 2005--2006 school years associated with
55 changes for such public pension liabilities. The amount of such addi-
56 tional accrual shall be certified to the commissioner of education by

1 the president of the board of education or the trustees or, in the case
2 of a city school district in a city with a population in excess of
3 125,000 inhabitants, the mayor of such city. Such application shall be
4 made by a school district, after the board of education or trustees have
5 adopted a resolution to do so and in the case of a city school district
6 in a city with a population in excess of 125,000 inhabitants, with the
7 approval of the mayor of such city.

8 2. The claim for an apportionment to be paid to a school district
9 pursuant to subdivision one of this section shall be submitted to the
10 commissioner of education on a form prescribed for such purpose, and
11 shall be payable upon determination by such commissioner that the form
12 has been submitted as prescribed. Such approved amounts shall be payable
13 on the same day in September of the school year following the year in
14 which application was made as funds provided pursuant to subparagraph 4
15 of paragraph b of subdivision 4 of section 92-c of the state finance
16 law, on the audit and warrant of the state comptroller on vouchers
17 certified or approved by the commissioner of education in the manner
18 prescribed by law from moneys in the state lottery fund and from the
19 general fund to the extent that the amount paid to a school district
20 pursuant to this section exceeds the amount, if any, due such school
21 district pursuant to subparagraph 2 of paragraph a of subdivision 1 of
22 section 3609-a of the education law in the school year following the
23 year in which application was made.

24 3. Notwithstanding the provisions of section 3609-a of the education
25 law, an amount equal to the amount paid to a school district pursuant to
26 subdivisions 1 and 2 of this section shall first be deducted from the
27 following payments due the school district during the school year
28 following the year in which application was made pursuant to subpara-
29 graphs 1, 2, 3, 4 and 5 of paragraph a of subdivision 1 of section
30 3609-a of the education law in the following order: the lottery appor-
31 tionment payable pursuant to subparagraph 2 of such paragraph followed
32 by the fixed fall payments payable pursuant to subparagraph 4 of such
33 paragraph and then followed by the district's payments to the teachers'
34 retirement system pursuant to subparagraph 1 of such paragraph, and any
35 remainder to be deducted from the individualized payments due the
36 district pursuant to paragraph b of such subdivision shall be deducted
37 on a chronological basis starting with the earliest payment due the
38 district.

39 § 25. The amounts specified in this section shall be a set-aside from
40 the state funds which each such district is receiving from the total
41 foundation aid:

42 1. for the development, maintenance or expansion of magnet schools or
43 magnet school programs for the 2025--2026 school year. For the city
44 school district of the city of New York there shall be a set-aside of
45 foundation aid equal to forty-eight million one hundred seventy-five
46 thousand dollars (\$48,175,000) including five hundred thousand dollars
47 (\$500,000) for the Andrew Jackson High School; for the Buffalo city
48 school district, twenty-one million twenty-five thousand dollars
49 (\$21,025,000); for the Rochester city school district, fifteen million
50 dollars (\$15,000,000); for the Syracuse city school district, thirteen
51 million dollars (\$13,000,000); for the Yonkers city school district,
52 forty-nine million five hundred thousand dollars (\$49,500,000); for the
53 Newburgh city school district, four million six hundred forty-five thou-
54 sand dollars (\$4,645,000); for the Poughkeepsie city school district,
55 two million four hundred seventy-five thousand dollars (\$2,475,000); for
56 the Mount Vernon city school district, two million dollars (\$2,000,000);

1 for the New Rochelle city school district, one million four hundred ten
2 thousand dollars (\$1,410,000); for the Schenectady city school district,
3 one million eight hundred thousand dollars (\$1,800,000); for the Port
4 Chester city school district, one million one hundred fifty thousand
5 dollars (\$1,150,000); for the White Plains city school district, nine
6 hundred thousand dollars (\$900,000); for the Niagara Falls city school
7 district, six hundred thousand dollars (\$600,000); for the Albany city
8 school district, three million five hundred fifty thousand dollars
9 (\$3,550,000); for the Utica city school district, two million dollars
10 (\$2,000,000); for the Beacon city school district, five hundred sixty-
11 six thousand dollars (\$566,000); for the Middletown city school
12 district, four hundred thousand dollars (\$400,000); for the Freeport
13 union free school district, four hundred thousand dollars (\$400,000);
14 for the Greenburgh central school district, three hundred thousand
15 dollars (\$300,000); for the Amsterdam city school district, eight
16 hundred thousand dollars (\$800,000); for the Peekskill city school
17 district, two hundred thousand dollars (\$200,000); and for the Hudson
18 city school district, four hundred thousand dollars (\$400,000).

19 2. Notwithstanding any inconsistent provision of law to the contrary,
20 a school district setting aside such foundation aid pursuant to this
21 section may use such set-aside funds for: (a) any instructional or
22 instructional support costs associated with the operation of a magnet
23 school; or (b) any instructional or instructional support costs associ-
24 ated with implementation of an alternative approach to promote diversity
25 and/or enhancement of the instructional program and raising of standards
26 in elementary and secondary schools of school districts having substan-
27 tial concentrations of minority students.

28 3. The commissioner of education shall not be authorized to withhold
29 foundation aid from a school district that used such funds in accordance
30 with this paragraph, notwithstanding any inconsistency with a request
31 for proposals issued by such commissioner for the purpose of attendance
32 improvement and dropout prevention for the 2025--2026 school year, and
33 for any city school district in a city having a population of more than
34 one million, the set-aside for attendance improvement and dropout
35 prevention shall equal the amount set aside in the base year. For the
36 2025--2026 school year, it is further provided that any city school
37 district in a city having a population of more than one million shall
38 allocate at least one-third of any increase from base year levels in
39 funds set aside pursuant to the requirements of this section to communi-
40 ty-based organizations. Any increase required pursuant to this section
41 to community-based organizations must be in addition to allocations
42 provided to community-based organizations in the base year.

43 4. For the purpose of teacher support for the 2025--2026 school year:
44 for the city school district of the city of New York, sixty-two million
45 seven hundred seven thousand dollars (\$62,707,000); for the Buffalo city
46 school district, one million seven hundred forty-one thousand dollars
47 (\$1,741,000); for the Rochester city school district, one million seven-
48 ty-six thousand dollars (\$1,076,000); for the Yonkers city school
49 district, one million one hundred forty-seven thousand dollars
50 (\$1,147,000); and for the Syracuse city school district, eight hundred
51 nine thousand dollars (\$809,000). All funds made available to a school
52 district pursuant to this section shall be distributed among teachers
53 including prekindergarten teachers and teachers of adult vocational and
54 academic subjects in accordance with this section and shall be in addi-
55 tion to salaries heretofore or hereafter negotiated or made available;
56 provided, however, that all funds distributed pursuant to this section

1 for the current year shall be deemed to incorporate all funds distrib-
2 uted pursuant to former subdivision 27 of section 3602 of the education
3 law for prior years. In school districts where the teachers are repres-
4 ented by certified or recognized employee organizations, all salary
5 increases funded pursuant to this section shall be determined by sepa-
6 rate collective negotiations conducted pursuant to the provisions and
7 procedures of article 14 of the civil service law, notwithstanding the
8 existence of a negotiated agreement between a school district and a
9 certified or recognized employee organization.

10 § 26. Support of public libraries. The moneys appropriated for the
11 support of public libraries by a chapter of the laws of 2025 enacting
12 the aid to localities budget shall be apportioned for the 2025--2026
13 state fiscal year in accordance with the provisions of sections 271,
14 272, 273, 282, 284, and 285 of the education law as amended by the
15 provisions of such chapter and the provisions of this section, provided
16 that library construction aid pursuant to section 273-a of the education
17 law shall not be payable from the appropriations for the support of
18 public libraries and provided further that no library, library system or
19 program, as defined by the commissioner of education, shall receive less
20 total system or program aid than it received for the year 2001--2002
21 except as a result of a reduction adjustment necessary to conform to the
22 appropriations for support of public libraries.

23 Notwithstanding any other provision of law to the contrary the moneys
24 appropriated for the support of public libraries for the year 2025--2026
25 by a chapter of the laws of 2025 enacting the aid to localities budget
26 shall fulfill the state's obligation to provide such aid and, pursuant
27 to a plan developed by the commissioner of education and approved by the
28 director of the budget, the aid payable to libraries and library systems
29 pursuant to such appropriations shall be reduced proportionately to
30 assure that the total amount of aid payable does not exceed the total
31 appropriations for such purpose.

32 § 27. Severability. The provisions of this act shall be severable, and
33 if the application of any clause, sentence, paragraph, subdivision,
34 section or part of this act to any person or circumstance shall be
35 adjudged by any court of competent jurisdiction to be invalid, such
36 judgment shall not necessarily affect, impair or invalidate the applica-
37 tion of any such clause, sentence, paragraph, subdivision, section, or
38 part of this act or remainder thereof, as the case may be, to any other
39 person or circumstance, but shall be confined in its operation to the
40 clause, sentence, paragraph, subdivision, section or part thereof
41 directly involved in the controversy in which such judgment shall have
42 been rendered.

43 § 28. This act shall take effect immediately, and shall be deemed to
44 have been in full force and effect on and after April 1, 2025, provided,
45 however, that:

46 1. Sections one, two, three, four, five, six, seven, eight, nine, ten,
47 twelve-a, thirteen, fourteen, fourteen-a, fifteen, seventeen, twenty-one
48 and twenty-five of this act shall take effect July 1, 2025; and

49 2. The amendments to chapter 756 of the laws of 1992 made by sections
50 eighteen and nineteen of this act shall not affect the repeal of such
51 chapter and shall be deemed repealed therewith.

52 PART B

53 Section 1. The education law is amended by adding a new section 915-a
54 to read as follows:

1 § 915-a. Universal free school meals. 1. The department shall require
2 all school districts, charter schools and non-public schools in the
3 state that participate in the national school lunch program or school
4 breakfast program as provided in the Richard B. Russell National School
5 Lunch Act and the Child Nutrition Act, as amended, to serve breakfast
6 and lunch at no cost to the student. School districts, charter schools
7 and non-public schools shall maximize federal reimbursement for school
8 breakfast and lunch programs by adopting Provision 2, the federal Commu-
9 nity Eligibility Provision, or any other provision under such Act, the
10 National School Lunch Act or the National Child Nutrition Act that, in
11 the opinion of the department, maximizes federal funding for meals
12 served in such programs. Provided that school food authorities that do
13 not qualify as a single entity to participate in the community eligibil-
14 ity provision shall be required to group schools within the school food
15 authority, to the extent possible, for purposes of maximizing partic-
16 ipation in the community eligibility provision, and provided further
17 that school food authorities shall reapply annually for the community
18 eligibility provision program in the event that doing so would result in
19 a higher percentage of meals being reimbursed at the federal reimburse-
20 ment rate for a free meal.

21 2. Notwithstanding any provision of law, rule or regulation to the
22 contrary, for the two thousand twenty-five--two thousand twenty-six
23 school year and each school year thereafter, for each breakfast and
24 lunch meal served, the department shall reimburse the school food
25 authority the difference between (a) the combined state and federal
26 reimbursement rate for a reduced-price or paid meal, respectively, for
27 the current school year and (b) the combined state and federal
28 reimbursement rate for a free meal for the current school year, provided
29 that the total reimbursement rate for each meal served shall equal the
30 combined state and federal reimbursement rate for a free meal for the
31 current school year.

32 3. The department, in consultation with the office of temporary and
33 disability assistance, shall promulgate any rule or regulation needed
34 for school districts, charter schools and non-public schools to promote
35 the supplemental nutrition assistance program to a student or person in
36 parental relation to a student by providing either application assist-
37 ance or a direct referral to an outreach partner identified to the
38 department by the office of temporary and disability assistance to maxi-
39 mize the number of students directly certified for free school meals.

40 4. In addition to fulfilling any other applicable state and federal
41 requirements, the department shall provide technical assistance to
42 assist school districts, charter schools, and non-public schools in the
43 transition to universal school meals to ensure successful program oper-
44 ations and to maximize federal funding, including but not limited to the
45 following:

46 (a) Assisting school food authorities with one or more schools quali-
47 fying for the community eligibility provision in meeting any state and
48 federal requirements necessary in order to maximize reimbursement
49 through the community eligibility provision, including assisting such
50 school food authorities in maximizing participation in the community
51 eligibility provision.

52 (b) If a school food authority is ineligible to participate in and
53 receive reimbursement through the community eligibility provision,
54 assisting the school food authority in achieving and maximizing eligi-
55 bility and, if that is not feasible, assisting the school food authority
56 in determining the viability of using Provision 2 or other special

federal provisions available to schools to maximize federal reimbursement.

5. School districts, charter schools, and non-public schools shall maximize the number of students eligible for free meals by conducting the Direct Certification Matching Process at a minimum of three times per year, designating children as "Other Source Categorically Eligible", as defined by federal regulations, or, for schools not participating in the Community Eligibility Provision or Provision 2, by annually collecting the free and reduced-price meal application.

§ 2. Section 925 of the education law is REPEALED.

§ 3. This act shall take effect July 1, 2025.

PART C

Intentionally Omitted

PART D

Section 1. Section 666 of the education law is REPEALED.

§ 2. Paragraph a of subdivision 2 of section 667-c of the education law, as amended by section 1 of part E of chapter 56 of the laws of 2022, is amended to read as follows:

a. for students defined in paragraph a of subdivision one of this section, a part-time student is one who: (i) ~~is~~ enrolled [~~as a first-time freshman during the two thousand six--two thousand seven academic year or thereafter~~] at a college or university within the state university, including a statutory or contract college, a community college established pursuant to article one hundred twenty-six of this chapter, the city university of New York, or a non-profit college or university incorporated by the regents or by the legislature;

(ii) is enrolled for at least [~~six~~] ~~three~~ but less than twelve semester hours, or the equivalent, per semester in an approved undergraduate degree program; and

(iii) has a cumulative grade-point average of at least 2.00.

§ 3. Section 667-c-1 of the education law is REPEALED.

§ 4. Paragraph c of subdivision 5 of section 610 of the education law, as added by chapter 425 of the laws of 1988, is amended to read as follows:

c. Any semester, quarter or term of attendance during which a student receives an award for part-time study pursuant to this section shall be counted as one-half of a semester, quarter or term, as the case may be, toward the maximum term of eligibility for tuition assistance awards pursuant to [~~sections six hundred sixty-six and~~] ~~section~~ six hundred sixty-seven of this chapter.

§ 5. Subdivision 2 of section 667 of the education law, as amended by chapter 376 of the laws of 2019, is amended to read as follows:

2. Duration. No undergraduate shall be eligible for more than four academic years of study, or five academic years if the program of study normally requires five years. Students enrolled in a program of remedial study, approved by the commissioner in an institution of higher education and intended to culminate in a degree in undergraduate study shall, for purposes of this section, be considered as enrolled in a program of study normally requiring five years. An undergraduate student enrolled in an eligible two year program of study approved by the commissioner shall be eligible for no more than three academic years of study. An

1 undergraduate student enrolled in an approved two or four-year program
2 of study approved by the commissioner who must transfer to another
3 institution as a result of permanent college closure shall be eligible
4 for up to two additional semesters, or their equivalent, to the extent
5 credits necessary to complete ~~[his or her]~~ the student's program of
6 study were deemed non-transferable from the closed institution or were
7 deemed not applicable to such student's program of study by the new
8 institution. Any semester, quarter, or term of attendance during which
9 a student receives any award under this article, after the effective
10 date of the former scholar incentive program and prior to academic year
11 nineteen hundred eighty-nine--nineteen hundred ninety, shall be counted
12 toward the maximum term of eligibility for tuition assistance under this
13 section, except that any semester, quarter or term of attendance during
14 which a student received an award pursuant to section six hundred
15 sixty-six of this subpart shall be counted as one-half of a semester,
16 quarter or term, as the case may be, toward the maximum term of eligi-
17 bility under this section. Any semester, quarter or term of attendance
18 during which a student received an award pursuant to section six hundred
19 sixty-seven-a of this subpart shall not be counted toward the maximum
20 term of eligibility under this section.

21 § 6. This act shall take effect immediately and shall apply to academ-
22 ic years 2025-2026 and thereafter.

23 PART E

24 Section 1. Subdivision 2 of section 669-h of the education law, as
25 amended by section 1 of part G of chapter 56 of the laws of 2022, is
26 amended to read as follows:

27 2. Amount. Within amounts appropriated therefor and based on avail-
28 ability of funds, awards shall be granted ~~[beginning with the two thou-~~
29 ~~sand seventeen two thousand eighteen academic year and thereafter]~~ to
30 applicants that the corporation has determined are eligible to receive
31 such awards. The corporation shall grant such awards in an amount up to
32 ~~[five thousand five hundred dollars or]~~ actual tuition~~[, whichever is~~
33 ~~less]~~; provided, however, (a) a student who receives educational grants
34 and/or scholarships that cover the student's full cost of attendance
35 shall not be eligible for an award under this program; and (b) an award
36 under this program shall be applied to tuition after the application of
37 payments received under the tuition assistance program pursuant to
38 section six hundred sixty-seven of this subpart, tuition credits pursu-
39 ant to section six hundred eighty-nine-a of this article, federal Pell
40 grant pursuant to section one thousand seventy of title twenty of the
41 United States code, et seq., and any other program that covers the cost
42 of attendance unless exclusively for non-tuition expenses, and the award
43 under this program shall be reduced in the amount equal to such
44 payments, provided that the combined benefits do not exceed ~~[five thou-~~
45 ~~sand five hundred dollars. Upon notification of an award under this~~
46 ~~program, the institution shall defer the amount of tuition. Notwith-~~
47 ~~standing paragraph h of subdivision two of section three hundred fifty-~~
48 ~~five and paragraph (a) of subdivision seven of section six thousand two~~
49 ~~hundred six of this chapter, and any other law, rule or regulation to~~
50 ~~the contrary,]~~ the resident undergraduate tuition charged by ~~[the insti-~~
51 ~~tution to recipients of an award shall not exceed the tuition rate~~
52 ~~established by the institution for the two thousand sixteen two thou-~~
53 ~~sand seventeen academic year provided, however, that in the two thousand~~
54 ~~twenty two two thousand twenty three academic year and every year ther-~~

~~eafter, the undergraduate tuition charged by the institution to recipients of an award shall be reset to equal the tuition rate established by the institution for the forthcoming academic year, provided further that the tuition credit calculated pursuant to section six hundred eighty-nine-a of this article shall be applied toward the tuition rate charged for recipients of an award under this program. Provided further that] the state university of New York [and the city university of New York shall provide an additional tuition credit to students receiving an award to cover the remaining cost of tuition].~~

§ 2. This act shall take effect immediately and shall be applicable to academic years 2025-2026 and thereafter.

PART F

Section 1. The education law is amended by adding a new section 6311 to read as follows:

§ 6311. New York college access program (NYCAP). 1. Eligibility. A New York college access program (NYCAP) award shall be made to an applicant who meets all of the following conditions:

(a) has applied for a New York state tuition assistance program award pursuant to section six hundred sixty-seven of this chapter, a federal Pell grant pursuant to section one thousand seventy of title twenty of the United States code, et seq., and any other applicable financial aid;

(b) is matriculated in a degree-granting program leading to an associate degree at a community college or an agricultural and technical college of the state university of New York or a community college or senior college of the city university of New York;

(c) is eligible for the payment of tuition and fees at a rate no greater than that imposed for resident students at the college in which the applicant is matriculated; and

(d) has not previously obtained an associate degree for which payment of an award was received pursuant to this section.

2. Amount. Within amounts appropriated therefor, and subject to availability of funds, awards shall be granted for the two thousand twenty-five -- two thousand twenty-six academic year and thereafter to applicants who are determined to be eligible to receive such awards. Awards shall be granted in an amount up to actual tuition; provided, however, (a) a student who receives educational grants and/or scholarships that cover the student's full cost of attendance shall not be eligible for an award under this program; and (b) an award under this program shall be applied to tuition after the application of payments received under the tuition assistance program pursuant to section six hundred sixty-seven of this chapter, tuition credits pursuant to section six hundred eighty-nine-a of this chapter, federal Pell grant pursuant to section one thousand seventy of title twenty of the United States code, et seq., and any other program that covers the cost of attendance unless exclusively for non-tuition expenses, and the award under this program shall be reduced in the amount equal to such payments, provided that the combined benefits do not exceed the actual cost of resident tuition.

3. Additional provisions. An eligible recipient shall complete at least six credits per semester, for a total of at least twelve credits per academic year. An eligible recipient shall be continuously enrolled without a gap of more than one academic year, provided that such duration may be extended for an allowable interruption of study including, but not limited to, death of a family member, medical leave, military service, and parental leave. Notwithstanding any inconsistent provision

1 of this section, if an applicant fails to meet the eligibility criteria
2 of this section at any point, no further awards shall be made to the
3 applicant.

4 4. Conditions. (a) An eligible recipient shall continue to make satis-
5 factory academic progress in order to maintain continued eligibility for
6 an award pursuant to this section.

7 (b) No student shall receive an award pursuant to this section for
8 greater than ten semesters.

9 § 2. This act shall take effect immediately.

10 PART G

11 Intentionally Omitted

12 PART H

13 Intentionally Omitted

14 PART I

15 Intentionally Omitted

16 PART J

17 Intentionally Omitted

18 PART K

19 Intentionally Omitted

20 PART L

21 Section 1. Paragraph (a) of subdivision 1 of section 33 of the private
22 housing finance law, as amended by chapter 229 of the laws of 1989, is
23 amended to read as follows:

24 (a) Upon the consent of the local legislative body of any municipality
25 in which a project is or is to be located, the real property in a
26 project shall be exempt from local and municipal taxes, other than
27 assessments for local improvements, to the extent of all or part of the
28 value of the property included in such project which represents an
29 increase over the assessed valuation of the real property, both land and
30 improvements, acquired for the project at the time of its acquisition by
31 the limited-profit housing company, provided, however, that the real
32 property in a project acquired for purposes of rehabilitation shall be
33 exempt to the extent of all or part of the value of the property
34 included in such project, and further provided that the amount of such
35 taxes to be paid shall not be less than ten per centum of the annual
36 shelter rent or carrying charges of such project except that for
37 projects located or to be located in a city of a population of one
38 million or more, ~~upon the consent of the local legislative body of the~~
39 ~~municipality, the amount of such taxes to be paid may be set at not less~~

~~than (i) the taxes payable with respect to the real property in such project with respect to the year nineteen hundred seventy three, or, (ii) if such project was not occupied in such year, not less than ten per centum of the annual shelter rent or carrying charges first established pursuant to subdivision one of section thirty-one of this article]~~ the amount of such taxes shall be no more than five per centum of

the annual shelter rent or carrying charges of the project. Upon the consent of the local legislative body of a municipality, other than a city with a population of one million or more, in which the project is located, the amount of such taxes may be further reduced to five per centum or less of the annual shelter rent or carrying charges of the project. Any such granted consent to reduce the amount of such taxes shall expire every ten years. If such authorization is not renewed, the rate of taxation shall revert to the level established before the consent was granted.

Shelter rent shall mean the total rents received from the occupants of a project less the cost of providing to the occupants electricity, gas, heat and other utilities. Total rents shall include rent supplements and subsidies received from the federal government, the state or a municipality on behalf of such occupants^[7] but shall not include interest reduction payments pursuant to subdivision (a) of section two hundred one of the Federal Housing and Urban Development Act of nineteen hundred sixty-eight. The tax exemption shall operate and continue so long as the mortgage loans of the company, including any additional mortgage loan the proceeds of which are used primarily for the residential portion of the project, which additional loan is approved by the commissioner or the supervising agency, are outstanding.

§ 2. Paragraph (c) of subdivision 1 of section 33 of the private housing finance law, as amended by chapter 229 of the laws of 1989, is amended to read as follows:

(c) Notwithstanding the provisions of paragraphs (a) and (b) of this subdivision, the real property of a state urban development corporation project acquired, owned, constructed, managed or operated by a company incorporated pursuant to the not-for-profit corporation law and this article shall be entitled to all the benefits provided by section four hundred twenty-two of the real property tax law. The real property of a state urban development corporation project, other than a state urban development corporation project acquired, owned, constructed, managed or operated by a company incorporated pursuant to the not-for-profit corporation law and this article, shall be exempt from all local and municipal taxes, other than assessments for local improvements, to the extent of the value of the property included in such project as represents an increase over the assessed valuation of the real property, both land and improvements, acquired for the project on the date of its acquisition by the limited-profit housing company, provided that the amount of such taxes to be paid shall not be less than ten per centum of the annual shelter rent or carrying charges of such project, as defined in paragraph (a) hereof, except that in a city with a population of one million or more, the amount of such taxes shall be no more than five per centum of the annual shelter rent or carrying charges of the project. Upon the consent of the local legislative body of the municipality, other than a city with a population of one million or more, in which the project is located, the amount of such taxes may be further reduced to five per centum or less of the annual shelter rent or carrying charges of the project. Any such granted consent to reduce the amount of such taxes shall expire every ten years. If such authorization is not renewed, the rate of taxation shall revert to the level established before the

1 consent was granted. The tax exemption shall operate and continue so
2 long as the mortgage loans of such limited profit housing company,
3 including any additional mortgage loan the proceeds of which are used
4 primarily for the residential portion of the project, which additional
5 loan is approved by the commissioner or the supervising agency, are
6 outstanding and the project is continued to be operated as a limited-
7 profit housing project. If a state urban development corporation project
8 qualifying for tax exemption pursuant to this paragraph is sold, with
9 the approval of the commissioner, to another limited-profit housing
10 company, such successor company shall be entitled to all the benefits of
11 this paragraph. In the event that such sale is to a company incorporated
12 pursuant to the not-for-profit corporation law and this article, such
13 successor company shall be entitled to all the benefits provided by
14 section four hundred twenty-two of the real property tax law.

15 § 3. Paragraph (d) of subdivision 1 of section 33 of the private hous-
16 ing finance law, as amended by chapter 744 of the laws of 1977, is
17 amended to read as follows:

18 (d) Notwithstanding the provisions of paragraphs (a) and (b) of this
19 subdivision, when a project is financed with a mortgage loan pursuant to
20 this article or article three of this chapter and (i) there is a partic-
21 ipation, new loan or investment pursuant to section twenty-three-b of
22 this article or (ii) such mortgage loan is assigned, modified or satis-
23 fied pursuant to section twenty-three-a or forty-four-b or subdivision
24 twenty-two-a of section six hundred fifty-four of this chapter, the real
25 property of the project shall be exempt from all local and municipal
26 taxes, other than assessments for local improvements, to the extent of
27 the value of the real property included in such project which represents
28 an increase over the assessed valuation of the real property, both land
29 and improvements, acquired for the project on the date of its original
30 acquisition for the project by the original mortgagor under a mortgage
31 loan pursuant to this article or article three of this chapter, provided
32 that the amount of taxes to be paid on the project shall not be less
33 than ten per centum of the annual shelter rent or carrying charges of
34 such project, as defined in paragraph (a) of this subdivision, except
35 that in a city with a population of one million or more, the amount of
36 such taxes shall be no more than five per centum of the annual shelter
37 rent or carrying charges of the project. Upon the consent of the local
38 legislative body of the municipality, other than a city with a popu-
39 lation of one million or more, in which the project is located, the
40 amount of such taxes may be further reduced to five per centum or less
41 of the annual shelter rent or carrying charges of the project. Any such
42 granted consent to reduce the amount of such taxes shall expire every
43 ten years. If such authorization is not renewed, the rate of taxation
44 shall revert to the level established before the consent was granted.

45 Such tax exemption shall commence in each instance from the date when
46 the project becomes subject to a mortgage insured by the federal govern-
47 ment and shall operate and continue so long as a mortgage on such
48 project is insured or held by the federal government or so long as the
49 project is thereafter owned by the federal government or so long as any
50 residual indebtedness is outstanding, whichever is longer. When there is
51 a participation, new loan or investment pursuant to section twenty-
52 three-b of this article, such participation, new loan or investment
53 shall be deemed to be the equivalent of a federally insured mortgage for
54 purposes of this paragraph. Nothing contained in this paragraph shall be
55 construed to limit or otherwise impair the benefits available to any
56 company eligible for exemption from taxation pursuant to section thir-

ty-one or section thirty-six-a of this article, section four hundred twenty-two or section four hundred sixty-seven-c of the real property tax law, or section fifty-eight of the public housing law. The foregoing shall not be deemed to authorize any company to receive the benefits of any exemption from taxation in contravention of the provisions of section two of article eighteen of the constitution.

§ 4. Subdivision 4 of section 33 of the private housing finance law, as amended by chapter 229 of the laws of 1989, is amended to read as follows:

4. Notwithstanding the provisions of subdivision one hereof, when a mutual company is organized under this article to facilitate the acquisition of a building by residents thereof, the amount of local and municipal taxes, other than assessments for local improvements, to be paid on the real property included in such project, both land and improvements, shall not exceed twenty per centum of the annual shelter rent or carrying charges of such project, as defined in paragraph (a) of subdivision one hereof; provided, however, that where such acquisition of a building by residents thereof involves the financing of rehabilitation or other improvement as well as acquisition, upon the consent of the local legislative body of the municipality in which the project is located the amount of such taxes may be further reduced provided that such amount shall not be less than ten per centum of the annual shelter rent or carrying charges of the project, as defined in paragraph (a) of subdivision one hereof; or the company may in lieu of requesting such consent apply for the benefits of the local law, if any, enacted pursuant to section four hundred eighty-nine of the real property tax law. Notwithstanding any other provision of this subdivision, in a city with a population of one million or more, the amount of such taxes shall be no more than five per centum of the annual shelter rent or carrying charges of the project. Upon the consent of the local legislative body of the municipality, other than a city with a population of one million or more, in which the project is located, the amount of such taxes may be further reduced to five per centum or less of the annual shelter rent or carrying charges of the project. Any such granted consent to reduce the amount of such taxes shall expire every ten years. If such authorization is not renewed, the rate of taxation shall revert to the level established before the consent was granted. Such tax exemption, if any, granted pursuant to this article shall operate and continue so long as a loan made under this article or any subsequent loan approved by the commissioner or the supervising agency to enhance the residential portion of the project and the project is continued to be operated for the purposes set forth in this article is outstanding.

§ 5. This act shall take effect immediately.

PART M

Intentionally Omitted

PART N

Section 1. Notwithstanding any other provision of law, the housing trust fund corporation may provide, for purposes of the neighborhood preservation program, a sum not to exceed \$18,800,000 for the fiscal year ending March 31, 2026. Within this total amount, \$250,000 shall be used for the purpose of entering into a contract with the neighborhood

1 preservation coalition to provide technical assistance and services to
2 companies funded pursuant to article 16 of the private housing finance
3 law. Notwithstanding any other provision of law, and subject to the
4 approval of the New York state director of the budget, the board of
5 directors of the state of New York mortgage agency shall authorize the
6 transfer to the housing trust fund corporation, for the purposes of
7 reimbursing any costs associated with neighborhood preservation program
8 contracts authorized by this section, a total sum not to exceed
9 \$18,800,000, such transfer to be made from (i) the special account of
10 the mortgage insurance fund created pursuant to section 2429-b of the
11 public authorities law, in an amount not to exceed the actual excess
12 balance in the special account of the mortgage insurance fund, as deter-
13 mined and certified by the state of New York mortgage agency for the
14 fiscal year 2024-2025 in accordance with section 2429-b of the public
15 authorities law, if any, and/or (ii) provided that the reserves in the
16 project pool insurance account of the mortgage insurance fund created
17 pursuant to section 2429-b of the public authorities law are sufficient
18 to attain and maintain the credit rating (as determined by the state of
19 New York mortgage agency) required to accomplish the purposes of such
20 account, the project pool insurance account of the mortgage insurance
21 fund, such transfer to be made as soon as practicable but no later than
22 June 30, 2025.

23 § 2. Notwithstanding any other provision of law, the housing trust
24 fund corporation may provide, for purposes of the rural preservation
25 program, a sum not to exceed \$8,050,000 for the fiscal year ending March
26 31, 2026. Within this total amount, \$250,000 shall be used for the
27 purpose of entering into a contract with the rural housing coalition to
28 provide technical assistance and services to companies funded pursuant
29 to article 17 of the private housing finance law. Notwithstanding any
30 other provision of law, and subject to the approval of the New York
31 state director of the budget, the board of directors of the state of New
32 York mortgage agency shall authorize the transfer to the housing trust
33 fund corporation, for the purposes of reimbursing any costs associated
34 with rural preservation program contracts authorized by this section, a
35 total sum not to exceed \$8,050,000, such transfer to be made from (i)
36 the special account of the mortgage insurance fund created pursuant to
37 section 2429-b of the public authorities law, in an amount not to exceed
38 the actual excess balance in the special account of the mortgage insur-
39 ance fund, as determined and certified by the state of New York mortgage
40 agency for the fiscal year 2024-2025 in accordance with section 2429-b
41 of the public authorities law, if any, and/or (ii) provided that the
42 reserves in the project pool insurance account of the mortgage insurance
43 fund created pursuant to section 2429-b of the public authorities law
44 are sufficient to attain and maintain the credit rating (as determined
45 by the state of New York mortgage agency) required to accomplish the
46 purposes of such account, the project pool insurance account of the
47 mortgage insurance fund, such transfer to be made as soon as practicable
48 but no later than June 30, 2025.

49 § 3. Notwithstanding any other provision of law, the housing trust
50 fund corporation may provide, for purposes of the rural rental assist-
51 ance program pursuant to article 17-A of the private housing finance
52 law, a sum not to exceed \$23,455,000 for the fiscal year ending March
53 31, 2026. Notwithstanding any other provision of law, and subject to
54 the approval of the New York state director of the budget, the board of
55 directors of the state of New York mortgage agency shall authorize the
56 transfer to the housing trust fund corporation, for the purposes of

1 reimbursing any costs associated with rural rental assistance program
2 contracts authorized by this section, a total sum not to exceed
3 \$23,455,000, such transfer to be made from (i) the special account of
4 the mortgage insurance fund created pursuant to section 2429-b of the
5 public authorities law, in an amount not to exceed the actual excess
6 balance in the special account of the mortgage insurance fund, as deter-
7 mined and certified by the state of New York mortgage agency for the
8 fiscal year 2024-2025 in accordance with section 2429-b of the public
9 authorities law, if any, and/or (ii) provided that the reserves in the
10 project pool insurance account of the mortgage insurance fund created
11 pursuant to section 2429-b of the public authorities law are sufficient
12 to attain and maintain the credit rating, as determined by the state of
13 New York mortgage agency, required to accomplish the purposes of such
14 account, the project pool insurance account of the mortgage insurance
15 fund, such transfer shall be made as soon as practicable but no later
16 than June 30, 2025.

17 § 4. Notwithstanding any other provision of law, the homeless housing
18 and assistance corporation may provide, for purposes of the New York
19 state supportive housing program, the solutions to end homelessness
20 program or the operational support for AIDS housing program, or to qual-
21 ified grantees under such programs, in accordance with the requirements
22 of such programs, a sum not to exceed \$56,381,000 for the fiscal year
23 ending March 31, 2026. The homeless housing and assistance corporation
24 may enter into an agreement with the office of temporary and disability
25 assistance to administer such sum in accordance with the requirements of
26 such programs. Notwithstanding any other provision of law, and subject
27 to the approval of the New York state director of the budget, the board
28 of directors of the state of New York mortgage agency shall authorize
29 the transfer to the homeless housing and assistance corporation, a total
30 sum not to exceed \$56,381,000, such transfer to be made from (i) the
31 special account of the mortgage insurance fund created pursuant to
32 section 2429-b of the public authorities law, in an amount not to exceed
33 the actual excess balance in the special account of the mortgage insur-
34 ance fund, as determined and certified by the state of New York mortgage
35 agency for the fiscal year 2024-2025 in accordance with section 2429-b
36 of the public authorities law, if any, and/or (ii) provided that the
37 reserves in the project pool insurance account of the mortgage insurance
38 fund created pursuant to section 2429-b of the public authorities law
39 are sufficient to attain and maintain the credit rating as determined by
40 the state of New York mortgage agency, required to accomplish the
41 purposes of such account, the project pool insurance account of the
42 mortgage insurance fund, such transfer shall be made as soon as practi-
43 cable but no later than March 31, 2026.

44 § 5. This act shall take effect immediately.

45 PART 0

46 Intentionally Omitted

47 PART P

48 Section 1. The social services law is amended by adding a new section
49 390-n to read as follows:

50 § 390-n. Child care support center; operating certificate required. 1.
51 For purposes of this section, "child care support center" shall mean a

1 child care resource and referral agency, as defined under section four
2 hundred ten-p of this article, or a not-for-profit corporation that is
3 certified by the office of children and family services to place indi-
4 viduals as substitute caregivers at child day care centers, group family
5 day care homes, family day care homes, or school age child care programs
6 as defined in section three hundred ninety of this title for the purpose
7 of providing child day care.

8 2. The office of children and family services shall be authorized to
9 certify, regulate, and inspect child care support centers. The office of
10 children and family services may, at its discretion, limit the number of
11 operating certificates issued.

12 3. No entity may place substitute caregivers at child day care
13 centers, group family day care homes, family day care homes, or school
14 age child care programs unless it possesses a valid operating certif-
15 icate issued by the office of children and family services.

16 4. Prior to placing an individual as a substitute caregiver at a child
17 day care center, group family day care home, family day care home, or
18 school age child care program as defined in section three hundred ninety
19 of this title for the purpose of providing child day care, a child care
20 support center shall verify that the substitute caregiver has met the:

21 (a) standards and training requirements set forth in section three
22 hundred ninety-a of this title for child day care program employees;

23 (a-1) qualification requirements set forth in section 418-1.13 of
24 title eighteen of the New York codes, rules & regulations;

25 (b) criminal history review and background clearance requirements of
26 section three hundred ninety-b of this title for prospective employees
27 of a child day care program; and

28 (c) any other requirements established by the regulations of the
29 office of children and family services.

30 5. Operating certificates issued under this section shall remain valid
31 unless surrendered by the child care support center or revoked by the
32 office of children and family services. The office of children and fami-
33 ly services may revoke an operating certificate at any time upon a
34 determination that the child care support center has not operated in
35 accordance with applicable state or federal law.

36 6. The office of children and family services shall deny an applica-
37 tion for certification of a child care support center if the applicant
38 had an operating certificate revoked within the two years prior to the
39 date of application.

40 7. A child care support center certified under this section shall be
41 considered the employer of all substitute caregivers placed at any child
42 day care center, group family day care home, family day care home, or
43 school-age child care program. The child care support center shall main-
44 tain insurance coverage for workers' compensation, unemployment insur-
45 ance, and disability coverage, and shall be liable for the actions of
46 substitute caregivers.

47 § 2. Section 390-b of the social services law is amended by adding a
48 new subdivision 12 to read as follows:

49 12. A child care support center certified pursuant to section three
50 hundred ninety-n of this title shall be authorized to request clearances
51 for substitute caregivers in accordance with this section. Substitute
52 caregivers shall be considered "prospective employees" of a child day
53 care program under subparagraph (iii) of paragraph (a) of subdivision
54 two of this section.

55 § 3. This act shall take effect one year after it shall have become a
56 law. Effective immediately, the addition, amendment, and/or repeal of

1 any rule or regulation necessary for the implementation of this act on
2 its effective date are authorized to be made and completed on or before
3 such effective date.

4 PART Q

5 Section 1. This act shall be known and may be cited as the "Increasing
6 Nutrition Support for Prenatal and Infant RESiliency ("INSPIRE") pilot
7 program" act.

8 § 2. The social services law is amended by adding a new section 152-e
9 to read as follows:

10 § 152-e. Increasing nutrition support for prenatal and infant resili-
11 ency ("INSPIRE") pilot program. 1. The office of temporary and disabili-
12 ty assistance shall establish a one-year pilot program to provide month-
13 ly allowance to support low-income mothers and infants. Such program
14 shall be known as the "increasing nutrition support for prenatal and
15 infant resiliency 'INSPIRE' pilot program" and referred to in this
16 section as "the program".

17 2. Pregnant individuals and families with a child under the age of one
18 year who are public assistance recipients, or income eligible to receive
19 public assistance, shall be eligible to receive a subsidy under the
20 program. Eligible individuals shall receive a subsidy of four hundred
21 dollars per month for the last three months of pregnancy and the first
22 twelve months of a child's life under the program.

23 3. The department shall allocate the necessary funds to local social
24 services districts for this purpose of this section. Monthly distrib-
25 utions shall be made by local social services districts on the first of
26 each month for the duration of the program to eligible participants.

27 4. The office of temporary and disability assistance shall determine
28 how income shall be verified to determine eligibility under the program.

29 5. The office of temporary and disability assistance, in coordination
30 with local social services districts, shall assist eligible participants
31 with access to resources, subsidy management, and any other assistance
32 deemed necessary by such office.

33 § 3. Paragraph (a) of subdivision 8 of section 131-a of the social
34 services law is amended by adding a new subparagraph (xiv) to read as
35 follows:

36 (xiv) any financial assistance received by individuals from the month-
37 ly allowance from the increasing nutrition support for prenatal and
38 infant resiliency ("INSPIRE") program under section one hundred fifty-
39 two-e of this title. Such exemption and disregard shall be applicable
40 for the length of time the individual receives the allowance. The
41 commissioner shall seek federal waiver authority to disregard the income
42 from this allowance for the purpose of the supplemental nutrition
43 assistance program.

44 § 4. This act shall take effect immediately.

45 PART R

46 Section 1. Paragraphs (a), (b), (c) and (d) of subdivision 1 of
47 section 131-o of the social services law, as amended by section 1 of
48 part H of chapter 56 of the laws of 2024, are amended to read as
49 follows:

50 (a) in the case of each individual receiving family care, an amount
51 equal to at least [~~\$181.00~~] \$186.00 for each month beginning on or after
52 January first, two thousand [~~twenty-four~~] twenty-five.

(b) in the case of each individual receiving residential care, an amount equal to at least ~~[\$208.00]~~ \$213.00 for each month beginning on or after January first, two thousand ~~[twenty-four]~~ twenty-five.

(c) in the case of each individual receiving enhanced residential care, an amount equal to at least ~~[\$249.00]~~ \$255.00 for each month beginning on or after January first, two thousand ~~[twenty-four]~~ twenty-five.

(d) for the period commencing January first, two thousand ~~[twenty-five]~~ twenty-six, the monthly personal needs allowance shall be an amount equal to the sum of the amounts set forth in subparagraphs one and two of this paragraph:

(1) the amounts specified in paragraphs (a), (b) and (c) of this subdivision; and

(2) the amount in subparagraph one of this paragraph, multiplied by the percentage of any federal supplemental security income cost of living adjustment which becomes effective on or after January first, two thousand ~~[twenty-five]~~ twenty-six, but prior to June thirtieth, two thousand ~~[twenty-five]~~ twenty-six, rounded to the nearest whole dollar.

§ 2. Paragraphs (a), (b), (c), (d), (e) and (f) of subdivision 2 of section 209 of the social services law, as amended by section 2 of part H of chapter 56 of the laws of 2024, are amended to read as follows:

(a) On and after January first, two thousand ~~[twenty-four]~~ twenty-five, for an eligible individual living alone, ~~[\$1,030.00]~~ \$1,054.00; and for an eligible couple living alone, ~~[\$1,510.00]~~ \$1,554.00.

(b) On and after January first, two thousand ~~[twenty-four]~~ twenty-five, for an eligible individual living with others with or without in-kind income, ~~[\$966.00]~~ \$990.00; and for an eligible couple living with others with or without in-kind income, ~~[\$1,461.00]~~ \$1,496.00.

(c) On and after January first, two thousand ~~[twenty-four]~~ twenty-five, (i) for an eligible individual receiving family care, ~~[\$1,209.48]~~ \$1,233.48 if ~~[he or she]~~ such individual is receiving such care in the city of New York or the county of Nassau, Suffolk, Westchester or Rockland; and (ii) for an eligible couple receiving family care in the city of New York or the county of Nassau, Suffolk, Westchester or Rockland, two times the amount set forth in subparagraph (i) of this paragraph; or (iii) for an eligible individual receiving such care in any other county in the state, ~~[\$1,171.48]~~ \$1,195.48; and (iv) for an eligible couple receiving such care in any other county in the state, two times the amount set forth in subparagraph (iii) of this paragraph.

(d) On and after January first, two thousand ~~[twenty-four]~~ twenty-five, (i) for an eligible individual receiving residential care, ~~[\$1,378.00]~~ \$1,402.00 if ~~[he or she]~~ such individual is receiving such care in the city of New York or the county of Nassau, Suffolk, Westchester or Rockland; and (ii) for an eligible couple receiving residential care in the city of New York or the county of Nassau, Suffolk, Westchester or Rockland, two times the amount set forth in subparagraph (i) of this paragraph; or (iii) for an eligible individual receiving such care in any other county in the state, ~~[\$1,348.00]~~ \$1,372.00; and (iv) for an eligible couple receiving such care in any other county in the state, two times the amount set forth in subparagraph (iii) of this paragraph.

(e) On and after January first, two thousand ~~[twenty-four]~~ twenty-five, (i) for an eligible individual receiving enhanced residential care, ~~[\$1,637.00]~~ \$1,661.00; and (ii) for an eligible couple receiving enhanced residential care, two times the amount set forth in subparagraph (i) of this paragraph.

1 (f) The amounts set forth in paragraphs (a) through (e) of this subdi-
2 vision shall be increased to reflect any increases in federal supple-
3 mental security income benefits for individuals or couples which become
4 effective on or after January first, two thousand ~~[twenty-five]~~ twenty-
5 six but prior to June thirtieth, two thousand ~~[twenty-five]~~ twenty-six.
6 § 3. This act shall take effect December 31, 2025.

7 PART S

8 Section 1. Section 4 of part W of chapter 54 of the laws of 2016
9 amending the social services law relating to the powers and duties of
10 the commissioner of social services relating to the appointment of a
11 temporary operator, as amended by section 1 of part T of chapter 56 of
12 the laws of 2022, is amended to read as follows:

13 § 4. This act shall take effect immediately and shall be deemed to
14 have been in full force and effect on and after April 1, 2016, provided
15 further that this act shall expire and be deemed repealed March 31,
16 ~~[2025]~~ 2028.

17 § 2. This act shall take effect immediately.

18 PART T

19 Intentionally Omitted

20 PART U

21 Intentionally Omitted

22 PART V

23 Intentionally Omitted

24 PART W

25 Intentionally Omitted

26 PART X

27 Section 1. Sections 135, 137 and 139 of the labor law are REPEALED.

28 § 2. The labor law is amended by adding a new section 135 to read as
29 follows:

30 § 135. Database for employment of minors; employee registration; minor
31 employment certificates. 1. Creation of database. The department, in
32 consultation with the department of education, shall create and maintain
33 a database for the employment of minors. All information pertaining to
34 any employer or minor that is submitted to the department under this
35 section shall be confidential and shall not be accessible to the public.
36 Nothing herein shall prevent the commissioner from sharing such informa-
37 tion for civil or criminal law enforcement purposes.

38 2. Employer registration and renewal process. Any employer required to
39 be registered under this section shall provide the department with the
40 information set forth in this section, as well as any additional infor-

1 mation that the department may require, in the form and manner
2 prescribed by the department. The department may also set fees for
3 employer registration and any renewal that may be required by the
4 department under this section.

5 3. Employer information. Every employer that hires, employs, or other-
6 wise permits any minor under the age of eighteen to work for the employ-
7 er within the state shall register in the database, in the form and
8 manner prescribed by the department, the following information:

9 (a) the name of the employer;

10 (b) the email address of the employer;

11 (c) any location of the employer's business operations within the
12 state, including any location where a minor will be working;

13 (d) the number and names of minors who are hired, employed, or other-
14 wise permitted to work for the employer;

15 (e) a certified statement from the employer that the employer is
16 hiring, employing, or otherwise permitting minors to work only in posi-
17 tions for the employer as permitted by law, rule, or regulation in order
18 to ensure their health, safety, and well-being; and

19 (f) any other information deemed appropriate by the commissioner.

20 4. Employer recordkeeping. An employer that is required to be regis-
21 tered under this section shall, before employment begins, file at the
22 place of the minor's employment such employment certificate or permit so
23 that it may be readily accessible to any person authorized by law to
24 examine such document. An employer's electronic access to such employ-
25 ment certificate or permit in the database shall meet the requirements
26 of this subdivision.

27 5. Minor registration. Any minor under the age of eighteen who plans
28 to work for an employer within the state shall complete a registration
29 in the database for any employment certificate or permit. All informa-
30 tion pertaining to the minor shall be confidential and shall not be
31 accessible by the public. If the minor plans to work for a different
32 employer, or for an employer in addition to the employer for which the
33 minor first registered, the minor shall update the minor's registration.
34 The minor shall be required to submit documentation for registration in
35 the form and manner prescribed by the department.

36 6. Issuance of employment certificate or permit. Any employment
37 certificate or permit issued pursuant to part one of article sixty-five
38 of the education law shall be issued electronically within the database.
39 Any application for an employment certificate or permit that is made
40 pursuant to part one of article sixty-five of the education law shall be
41 made by a minor on a form prescribed by the commissioner of education
42 and approved by the department.

43 7. Regulations. The commissioner may prescribe regulations necessary
44 to carry out the provisions of this section.

45 § 3. Subdivision 3 of section 3215-a of the education law, as amended
46 by chapter 1017 of the laws of 1971, is amended to read as follows:

47 3. Approval of form and contents. The commissioner of education shall
48 prescribe or approve the form and contents of all certificates, permits,
49 physical examination records, and schooling records required by part one
50 of this article. The form of such certificates and permits shall also be
51 subject to the approval of the [industrial] commissioner of labor. Any
52 employment certificate or permit issued pursuant to this part shall be
53 issued electronically within the database created and maintained by the
54 department of labor, in consultation with the department, pursuant to
55 section one hundred thirty-five of the labor law.

§ 4. This act shall take effect two years after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such date.

PART Y

Section 1. The section heading, paragraphs (a), (b) and (c) of subdivision 1, paragraphs (a), (b) and (c) of subdivision 2, and paragraphs (a), (b) and (c) of subdivision 3 of section 26 of the veterans' services law are amended to read as follows:

Payment to ~~[parents]~~ immediate family members of veterans.

(a) (i) A parent, spouse, or minor child identified in 10 USC 1126 as a gold star parent, spouse, or minor child; or (ii) a parent, spouse, or minor child of a veteran who [heretofore has died or a parent of a veteran dying hereafter] died while on active duty, shall upon application to the state commissioner, be paid an annual annuity out of the treasury of the state for the sum of five hundred dollars for such term as such parent, spouse, or minor child shall be entitled thereto under the provisions of this article. Commencing in the year two thousand nineteen, the amount of any annuity payable under this section shall be the same amount as the annuity payable in the preceding year plus a percentage adjustment equal to the annual percentage increase, if any, for compensation and pension benefits administered by the United States Department of Veterans Affairs in the previous year. Such percentage increase shall be rounded up to the next highest one-tenth of one percent and shall not be less than one percent nor more than four percent. The commissioner of veterans' services, not later than February first of each year, shall publish by any reasonable means, including but not limited to posting on the department's website, the amount of the annuity as adjusted payable under this section. The term "parent" for the purposes of this section includes mother, father, stepmother, stepfather, mother through adoption and father through adoption. The term "spouse" for the purposes of this section means a person who was the spouse or domestic partner of the veteran at the time of such veteran's death regardless of whether such person has remarried or entered into a new domestic partnership since such veteran's death. The term "minor child" for the purposes of this section means a person who is under the age of eighteen years, or who, after attaining the age of eighteen years and until completion of education or training, but not after attaining the age of twenty-three years, is pursuing a course of instruction at an approved educational institution and who is the biological, step, or adopted child of a veteran. The term "active duty" for purposes of this section shall have the same meaning as such term is defined in section 101 of title 38 of the United States code, and shall also include any period of active duty for training during which the individual concerned died from a disease or injury incurred or aggravated in the line of duty, or any period of inactive duty training during which the individual concerned died from an injury incurred or aggravated in the line of duty or from an acute myocardial infarction, a cardiac arrest, or a cerebrovascular accident which occurred during such training. The terms "active duty for training" and "inactive duty training" for the purposes of this section shall have the same meaning as such terms are defined in section 101 of title 38 of the United States code.

(b) The entitlement of any parent, spouse, or minor child to receive the annuity provided by paragraph (a) of this subdivision shall terminate upon ~~[his or her]~~ such parent's, spouse's, or minor child's death or upon ~~[his or her]~~ such parent's, spouse's, or minor child's ceasing to continue to be a resident of and domiciled in the state of New York, but such entitlement may be reinstated upon application to the state commissioner, if such parent, spouse, or minor child shall thereafter resume ~~[his or her]~~ such parent's, spouse's, or minor child's residence and domicile in the state.

(c) The effective date of an award of the annuity to a parent, spouse, or minor child shall be the day after the date of death of the veteran if the application therefor is received within one year from date of death. If the application is received after the expiration of the first year following the date of the death of the veteran, the effective date of an award of the annuity to a parent, spouse, or minor child shall be the date of receipt of the application by the state commissioner. If the application is denied but is granted at a later date upon an application for reconsideration based upon new evidence, the effective date of the award of the annuity to a parent, spouse, or minor child shall be the date of the receipt of the application for reconsideration by the state commissioner.

(a) Any gold star parent, ~~[who is the parent]~~ spouse, or minor child of a deceased veteran, ~~[and]~~ or a parent, spouse, or minor child of a veteran pursuant to subparagraph (ii) of paragraph (a) of subdivision one of this section, who is a resident of and domiciled in the state of New York, ~~[shall]~~ may make application to the department.

(b) No entitlement shall be paid under this section to or for a gold star parent, spouse, or minor child, or a parent, spouse, or minor child of a veteran pursuant to subparagraph (ii) of paragraph (a) of subdivision one of this section, who is in prison in a federal, state, or local penal institution as a result of conviction of a felony or misdemeanor for any part of the period beginning sixty-one days after ~~[his or her]~~ such parent's, spouse's, or minor child's imprisonment begins and ending with ~~[his or her]~~ such parent's, spouse's, or minor child's release.

(c) Where one or more gold star parents, spouse, or minor children, or parents, spouse, or minor children of a veteran pursuant to subparagraph (ii) of paragraph (a) of subdivision one of this section, are disqualified for the annuity for a period under paragraph (b) of this subdivision, the state commissioner shall pay the shares of such disqualified parents, spouse, or minor children to the other parents or minor children, if they meet the qualifications on their own.

(a) Evidence of the military service of the deceased veteran ~~[of the gold star parent]~~ for each case shall be furnished in the manner and form prescribed by the state commissioner.

(b) Upon being satisfied that such service was honorable, that other facts and statements in the application of such gold star parent, spouse, or minor child or parent, spouse, or minor child of a veteran pursuant to subparagraph (ii) of paragraph (a) of subdivision one of this section, are true, the state commissioner shall certify to the state comptroller the name and address of such gold star parent, spouse, or minor child, or parent, spouse, or minor child of a veteran pursuant to subparagraph (ii) of paragraph (a) of subdivision one of this section.

(c) Thereafter, the department of taxation and finance, on the audit and warrant of the comptroller, shall pay such gold star parent, spouse, or minor child, or parent, spouse, or minor child of a veteran pursuant

1 to subparagraph (ii) of paragraph (a) of subdivision one of this
2 section, such sum as is authorized by the provisions of this section in
3 semi-annual installments for so long as such qualified gold star parent,
4 spouse, or minor child, or parent, spouse, or minor child of a veteran
5 pursuant to subparagraph (ii) paragraph (a) of subdivision one of this
6 section, shall meet the requirements of this section.

7 § 1-a. The commissioner of veterans' services shall conduct an
8 outreach program for the purpose of informing the public and persons who
9 may be eligible to receive an annuity under section 26 of the veterans'
10 services law of the amendments made to such section by section one of
11 this act. Such outreach activities shall include, but not be limited
12 to, an announcement on the department of veterans' services official
13 website and, to the extent practicable, making contact with any parent,
14 spouse, domestic partner or minor child of a service member known to
15 have died on active duty prior to the effective date of this act and
16 subsequent to such date, to inform such persons of their potential
17 eligibility to receive an annuity and to offer assistance in preparing
18 an application for such benefit. The commissioner of veterans' affairs
19 may seek the assistance of the division of military and naval affairs
20 and federal military authorities in identifying persons who may be
21 eligible to receive an annuity under section 26 of the veterans'
22 services law.

23 § 2. This act shall take effect immediately.

24 PART Z

25 Intentionally Omitted

26 PART AA

27 Section 1. On or before September 1, 2026, the commissioner of educa-
28 tion shall submit a report to the governor, the speaker of the assembly,
29 and the temporary president of the senate providing information regard-
30 ing usage, budgeting, staffing, assets, and functions of the New York
31 state museum in a form and manner as determined by the director of the
32 budget. Such report shall include but not be limited to the following
33 information:

34 1. Annual statistics for state fiscal years 2004-05 through 2024-25
35 for the following categories:

- 36 (a) visitorship by month;
37 (b) philanthropic donations, either monetary or in-kind;
38 (c) school student visitorship;
39 (d) marketing, advertising, and promotional expenditures;
40 (e) staffing levels and expenditures for each office of the museum;
41 (f) capital expenditures;
42 (g) museum revenue from sources other than state aid; and
43 (h) balance of total revenues and operating expenses;

44 2. A summary of current agreements with other cultural institutions
45 regarding loan or exchange of collections;

46 3. Current collections on display and length of time on display;

47 4. Current collections in possession of the museum but not on display;

48 5. New collections scheduled to go on display in the next five years;

49 6. A listing of special events, exhibitions, tours, limited or travel-
50 ing displays, and other events not included in information regarding
51 normal displayed collections over the prior five years;

1 7. A listing of any ancillary services provided at the museum, includ-
2 ing but not limited to food service, retail, or walking tours; and

3 8. Usage over the prior five years of the state museum collection by
4 federal agencies, New York state agencies, local governments, and other
5 governmental entities, whether for display or research purposes.

6 § 2. On or before September 1, 2027 and annually thereafter, the
7 commissioner shall submit a report to the governor, the speaker of the
8 assembly, and the temporary president of the senate including updated
9 information from the prior state fiscal year supplementing the informa-
10 tion provided in the report required by section one of this act.

11 § 3. This act shall take effect immediately.

12 PART BB

13 Section 1. The real property law is amended by adding a new section
14 265-c to read as follows:

15 § 265-c. Homeowner protection program. 1. (a) Within one year of the
16 effective date of this section, the department of law shall establish
17 the homeowner protection program to ensure the availability of free
18 housing counseling and legal services to homeowners for the purposes of
19 mitigating threats to homeownership including, but not limited to,
20 homeownership retention, home preservation, estate planning, as a tool
21 for preventing theft of real property and other scams targeted to home-
22 owners, preventing avoidable foreclosures and displacement, preserving
23 home equity, preserving homeownership, especially in communities of
24 color, and for any other purposes related to preserving homeownership.
25 Such program shall be funded by annual appropriation.

26 (b) The department of law shall provide grants to eligible not-for-
27 profit housing counseling organizations and legal services organizations
28 to provide services under the program. Such services shall include, but
29 not be limited to, assistance with loss mitigation and loan and workout
30 applications and negotiations; assistance in applying for assistance
31 programs for homeowners; assistance with resolving property tax, utility
32 and building code violation debts and liens; representation in mortgage
33 and tax and utility lien foreclosure litigation, limited scope represen-
34 tation at settlement conferences pursuant to rule thirty-four hundred
35 eight of the civil practice law and rules; assistance to unrepresented
36 litigants with answers and motions in judicial foreclosure proceedings
37 and brief advice; assistance to homeowners victimized by deed fraud,
38 distressed property consultant, partition and other scammers; and
39 redress of predatory and discriminatory lending, abusive mortgage
40 servicing, and property flipping, including affirmative litigation and
41 administrative complaints with federal, state and local fair housing
42 agencies; and for whatever other purpose deemed necessary by the depart-
43 ment of law to preserve homeownership.

44 2. (a) The department of law shall establish criteria for selection of
45 grant applications, review applications and make awards, and exercise
46 and perform such other functions as are related to the purposes of this
47 section.

48 (b) The department of law shall make one-year grants, within the
49 amounts appropriated for that purpose, to not-for-profit housing coun-
50 seling organizations serving homeowners at risk of losing their homes,
51 and legal services organizations, to provide counseling services and
52 legal representation of persons who reside in the state of New York who
53 are facing threats to homeownership.

(c) The department of law shall make one-year grants, within the amounts appropriated for that purpose, to ensure that housing counseling and legal services are available free of charge to homeowners in every county of the state and to ensure that the statutory mandates of sections thirteen hundred three and thirteen hundred four of the real property actions and proceedings law and rule thirty-four hundred eight of the civil practice law and rules are fulfilled.

(d) The department of law shall make one-year grants, within the amounts appropriated for that purpose, to ensure adequate training, technical assistance and support is provided to the not-for-profit housing counseling and legal services organizations providing services under this section, and to ensure the management of grants and supportive services including, but not limited to, toll-free hotlines, dedicated outreach, technical expertise and other assistance is made available to the organizations providing services.

3. Each not-for-profit housing counseling organization and legal services organization receiving a grant under this section shall at a minimum report to the attorney general no later than sixty days after the end of each one-year grant. Such report shall include an accounting of the funds received by the grant and the services provided.

§ 2. This act shall take effect immediately.

PART CC

Section 1. The public housing law is amended by adding a new article 14-A to read as follows:

ARTICLE 14-A

HOUSING ACCESS VOUCHER PROGRAM

Section 605. Legislative findings.

606. Definitions.

607. Housing access voucher program.

608. Eligibility.

609. Funding allocation and distribution.

610. Payment of housing vouchers.

611. Leases and tenancy.

612. Rental obligation.

613. Monthly assistance payment.

614. Inspection of units.

615. Rent.

616. Vacated units.

617. Leasing of units owned by a housing access voucher local administrator.

618. Verification of income.

619. Division of an assisted family.

620. Maintenance of effort.

621. Vouchers statewide.

622. Applicable codes.

623. Housing choice.

§ 605. Legislative findings. The legislature finds that it is in the public interest of the state to ensure that individuals and families are not rendered homeless because of an inability to pay the cost of housing, and to aid individuals and families who are homeless or face an imminent loss of housing in obtaining and maintaining suitable permanent housing in accordance with the provisions of this article.

§ 606. Definitions. For the purposes of this article, the following terms shall have the following meanings:

1 1. "Homeless" means lacking a fixed, regular, and adequate nighttime
2 residence; having a primary nighttime residence that is a public or
3 private place not designed for or ordinarily used as a regular sleeping
4 accommodation for human beings, including a car, park, abandoned build-
5 ing, bus or train station, airport, campground, or other place not meant
6 for human habitation; living in a supervised publicly or privately oper-
7 ated shelter designated to provide temporary living arrangements
8 (including hotels and motels paid for by federal, state or local govern-
9 ment programs for low-income individuals or by charitable organizations,
10 congregate shelters, or transitional housing); exiting an institution
11 where an individual or family has resided and lacking a regular fixed
12 and adequate nighttime residence upon release or discharge; individuals
13 released or scheduled to be released from incarceration and lacking a
14 regular fixed and adequate nighttime residence upon release or
15 discharge; being a homeless family with children or unaccompanied youth
16 defined as homeless under 42 U.S.C. § 11302(a); having experienced a
17 long-term period without living independently in permanent housing or
18 having experienced persistent instability as measured by frequent moves
19 and being reasonably expected to continue in such status for an extended
20 period of time because of chronic disabilities, chronic physical health
21 or mental health conditions, substance addiction, histories of domestic
22 violence or childhood abuse, the presence of a child or youth with a
23 disability, multiple barriers to employment, or other dangerous or life-
24 threatening conditions, including conditions that relate to violence
25 against an individual or a family member.

26 2. "Imminent loss of housing" means having received a verified rent
27 demand or a petition for eviction; having received a court order result-
28 ing from an eviction action that notifies the individual or family that
29 they must leave their housing; facing loss of housing due to a court
30 order to vacate the premises due to hazardous conditions, which may
31 include but not be limited to asbestos, lead exposure, mold, and radon;
32 having a primary nighttime residence that is a room in a hotel or motel
33 and lacking the resources necessary to stay; facing loss of the primary
34 nighttime residence, which may include living in the home of another
35 household, where the owner or renter of the housing will not allow the
36 individual or family to stay, provided further, that an assertion from
37 an individual or family member alleging such loss of housing or home-
38 lessness shall be sufficient to establish eligibility; or fleeing or
39 attempting to flee domestic violence, dating violence, sexual assault,
40 stalking, human trafficking or other dangerous or life-threatening
41 conditions that relate to violence against the individual or a family
42 member, provided further that an assertion from an individual or family
43 member alleging such abuse and loss of housing shall be sufficient to
44 establish eligibility.

45 3. "Public housing agency" means any county, municipality, or other
46 governmental entity or public body that is authorized to administer any
47 public housing program (or an agency or instrumentality of such an enti-
48 ty), and any other public or private non-profit entity that administers
49 any other public housing program or assistance.

50 4. "Section 8 local administrator" means a public housing agency that
51 administers the Section 8 Housing Choice Voucher program under section 8
52 of the United States housing act of 1937 within a community, county or
53 region, or statewide, on behalf of and under contract with the housing
54 trust fund corporation.

55 5. "Housing access voucher local administrator" means a public housing
56 agency, as defined in subdivision three of this section, or Section 8

1 local administrator designated to administer the housing access voucher
2 program within a community, county or region, or statewide, on behalf of
3 and under contract with the housing trust fund corporation. In the city
4 of New York, the housing access voucher local administrator shall be the
5 New York city department of housing preservation and development, or the
6 New York city housing authority, or both.

7 6. "Family" means a group of persons residing together. Such group
8 includes, but is not limited to a family with or without children (a
9 child who is temporarily away from the home because of placement in
10 foster care is considered a member of the family) or any remaining
11 members of a tenant family. The commissioner shall have the discretion
12 to determine if any other group of persons qualifies as a family.

13 7. "Owner" means any private person or any entity, including a cooper-
14 ative, an agency of the federal government, or a public housing agency,
15 having the legal right to lease or sublease dwelling units.

16 8. "Dwelling unit" means a single-family dwelling, including attached
17 structures such as porches and stoops; or a single-family dwelling unit
18 in a structure that contains more than one separate residential dwelling
19 unit, and in which each such unit is used or occupied, or intended to be
20 used or occupied, in whole or in part, as the residence of one or more
21 persons.

22 9. "Income" shall mean the same as it is defined by 24 CFR § 5.609 and
23 any amendments thereto.

24 10. "Adjusted income" shall mean the same as it is defined by 24 CFR §
25 5.611 and any amendments thereto.

26 11. "Reasonable rent" means rent not more than the rent charged on
27 comparable units in the private unassisted market and rent charged for
28 comparable unassisted units in the premises.

29 12. "Fair market rent" means the fair market rent for each rental area
30 as promulgated annually by the United States department of housing and
31 urban development pursuant to 42 U.S.C. 1437f.

32 13. "Voucher" means a document issued by the housing trust fund corpo-
33 ration pursuant to this article to an individual or family selected for
34 admission to the housing access voucher program, which describes such
35 program and the procedures for approval of a unit selected by the family
36 and states the obligations of the individual or family under the
37 program.

38 14. "Lease" means a written agreement between an owner and a tenant
39 for the leasing of a dwelling unit to the tenant. The lease establishes
40 the conditions for occupancy of the dwelling unit by an individual or
41 family with housing assistance payments under a contract between the
42 owner and the housing access voucher local administrator.

43 15. "Dependent" means any member of the family who is neither the head
44 of household, nor the head of the household's spouse, and who is:

- 45 (a) under the age of eighteen;
46 (b) a person with a disability; or
47 (c) a full-time student.

48 16. "Elderly" means a person sixty-two years of age or older.

49 17. "Child care expenses" means expenses relating to the care of chil-
50 dren under the age of thirteen.

51 18. "Severely rent burdened" means those individuals and families who
52 pay more than fifty percent of their income in rent as defined by the
53 United States census bureau.

54 19. "Disability" means:

- 55 (a) the inability to engage in any substantial gainful activity by
56 reason of any medically determinable physical or mental impairment which

1 can be expected to result in death or which has lasted or can be
2 expected to last for a continuous period of not less than twelve months;
3 or

4 (b) in the case of an individual who has attained the age of fifty-
5 five and is blind, the inability by reason of such blindness to engage
6 in substantial gainful activity requiring skills or abilities comparable
7 to those of any gainful activity in which they have previously engaged
8 with some regularity and over a substantial period of time; or

9 (c) a physical, mental, or emotional impairment which:

10 (i) is expected to be of long-continued and indefinite duration;

11 (ii) substantially impedes their ability to live independently; and

12 (iii) is of such a nature that such ability could be improved by more
13 suitable housing conditions; or

14 (d) a developmental disability that is a severe, chronic disability of
15 an individual that:

16 (i) is attributable to a mental or physical impairment or combination
17 of mental and physical impairments;

18 (ii) is manifested before the individual attains age twenty-two;

19 (iii) is likely to continue indefinitely;

20 (iv) results in substantial functional limitations in three or more of
21 the following areas of major life activity:

22 (A) self-care;

23 (B) receptive and expressive language;

24 (C) learning;

25 (D) mobility;

26 (E) self-direction;

27 (F) capacity for independent living; or

28 (G) economic self-sufficiency; and

29 (v) reflects the individual's need for a combination and sequence of
30 special, interdisciplinary, or generic services, individualized
31 supports, or other forms of assistance that are of lifelong or extended
32 duration and are individually planned and coordinated.

33 § 607. Housing access voucher program. The commissioner, subject to
34 the appropriation of funds for this purpose, shall implement a program
35 of rental assistance in the form of housing vouchers for eligible indi-
36 viduals and families who are homeless or who face an imminent loss of
37 housing in accordance with the provisions of this article. The housing
38 trust fund corporation shall issue vouchers pursuant to this article,
39 subject to appropriation of funds for this purpose, and may contract
40 with the division of housing and community renewal to administer any
41 aspect of this program in accordance with the provisions of this arti-
42 cle. The commissioner shall designate housing access voucher local
43 administrators in the state to make vouchers available to such individ-
44 uals and families and to administer other aspects of the program in
45 accordance with the provisions of this article.

46 § 608. Eligibility. The commissioner shall promulgate standards for
47 determining eligibility for assistance under this program. Individuals
48 and families who meet the standards shall be eligible regardless of
49 immigration status. Eligibility shall be limited to individuals and
50 families who are homeless or facing imminent loss of housing. Housing
51 access voucher local administrators may rely on a certification from a
52 social services provider serving homeless individuals, including, but
53 not limited to, homeless shelters to determine whether an applicant
54 qualifies as a homeless individual or family.

55 1. An individual or family shall be eligible for this program if they
56 are homeless or facing imminent loss of housing and have an income of no

1 more than fifty percent of the area median income, as defined by the
2 United States department of housing and urban development.

3 2. An individual or family in receipt of rental assistance pursuant to
4 this program shall be no longer financially eligible for such assistance
5 under this program when thirty percent of the individual's or family's
6 adjusted income is greater than or equal to the total rent for the
7 dwelling unit.

8 3. When an individual or family becomes financially ineligible for
9 rental assistance under this program pursuant to subdivision two of this
10 section, the individual or family shall retain rental assistance for a
11 period no shorter than one year, subject to appropriation of funds for
12 this purpose.

13 4. Income eligibility shall be verified prior to a housing access
14 voucher local administrator's initial determination to provide rental
15 assistance for this program and upon determination of such eligibility,
16 an individual or family shall annually certify their income for the
17 purpose of determining continued eligibility and any adjustments to such
18 rental assistance.

19 5. The commissioner may collaborate with the office of temporary and
20 disability assistance and other state and city agencies to allow a hous-
21 ing access voucher local administrator to access income information for
22 the purpose of determining an individual's or family's initial and
23 continued eligibility for the program.

24 6. Reviews of income shall be made no less frequently than annually.

25 § 609. Funding allocation and distribution. 1. Subject to appropri-
26 ation, funding shall be allocated by the commissioner in each county
27 except for those counties located within the city of New York, the
28 initial allocation shall be in proportion to the number of households in
29 each county or the city of New York who are severely rent burdened based
30 on data published by the United States census bureau. Funding for coun-
31 ties located within the city of New York shall be allocated directly to
32 the New York city department of housing preservation and development
33 and/or the New York city housing authority, as appropriate, in propor-
34 tion to the number of households in New York city as compared to the
35 rest of the state of New York who are severely rent burdened based on
36 data published by the United States census bureau.

37 2. The commissioner shall be responsible for distributing the funds
38 allocated in each county not located within the city of New York among
39 housing access voucher local administrators operating in each county or
40 in the city of New York.

41 3. Priority shall be given to applicants who are homeless. The commis-
42 sioner shall have the discretion to establish further priorities as
43 appropriate.

44 4. Up to ten percent of the funds allocated may be used by the commis-
45 sioner and the housing access voucher local administrator for adminis-
46 trative expenses attributable to administering the housing access vouch-
47 er program.

48 § 610. Payment of housing vouchers. 1. The housing voucher shall be
49 paid directly to any owner under a contract between the owner of the
50 dwelling unit to be occupied by the voucher recipient and the appropri-
51 ate housing access voucher local administrator. The commissioner shall
52 determine the form of the housing assistance payment contract and the
53 method of payment. A housing assistance payment contract entered into
54 pursuant to this section shall establish the payment standard (including
55 utilities and all maintenance and management charges) which the owner is
56 entitled to receive for each dwelling unit with respect to which such

1 assistance payments are to be made. The payment standard shall not
2 exceed one hundred twenty percent nor be less than ninety percent of the
3 fair market rent for the rental area in which it is located. Fair
4 market rent shall be determined pursuant to the procedures and standards
5 as set forth in the Federal Housing Choice voucher program, as set forth
6 in the applicable sections of Part 888 of Title 24 of the Code of Feder-
7 al Regulations. Fair market rent for a rental area shall be published
8 not less than annually by the commissioner and shall be made available
9 on the website of New York state homes and community renewal.

10 2. A housing assistance payment contract entered into pursuant to
11 subdivision one of this section may provide for an initial payment of up
12 to five months of rent arrears that have accrued during prior occupancy
13 of a dwelling unit by a voucher recipient if such payment of arrears is
14 necessary to continue such voucher recipient's occupancy of such dwell-
15 ing unit, and thereby prevent imminent loss of housing.

16 § 611. Leases and tenancy. Each housing assistance payment contract
17 entered into by a housing access voucher local administrator and the
18 owner of a dwelling unit shall provide:

19 1. that the lease between the tenant and the owner shall be for a term
20 of not less than one year, except that the housing access voucher local
21 administrator may approve a shorter term for an initial lease between
22 the tenant and the dwelling unit owner if the housing access voucher
23 local administrator determines that such shorter term would improve
24 housing opportunities for the tenant and if such shorter term is consid-
25 ered to be a prevailing local market practice;

26 2. that the dwelling unit owner shall offer leases to tenants assisted
27 under this article that:

28 (a) are in a standard form used in the locality by the dwelling unit
29 owner; and

30 (b) contain terms and conditions that:

31 (i) are consistent with state and local law; and

32 (ii) apply generally to tenants in the property who are not assisted
33 under this article;

34 (c) shall provide that during the term of the lease, the owner shall
35 not terminate the tenancy except for serious or repeated violation of
36 the terms and conditions of the lease, for violation of applicable state
37 or local law, or for other good cause, including, but not limited to,
38 the non-payment of the tenant's portion of the rent owed, and in the
39 case of an owner who is an immediate successor in interest pursuant to
40 foreclosure during the term of the lease vacating the property prior to
41 sale shall not constitute other good cause, except that the owner may
42 terminate the tenancy effective on the date of transfer of the unit to
43 the owner if the owner:

44 (i) will occupy the unit as a primary residence; and

45 (ii) has provided the tenant a notice to vacate at least ninety days
46 before the effective date of such notice;

47 (d) shall provide that any termination of tenancy under this section
48 shall be preceded by the provision of written notice by the owner to the
49 tenant specifying the grounds for that action, and any relief shall be
50 consistent with applicable state and local law;

51 3. that any unit under an assistance contract originated under this
52 article shall only be occupied by the individual or family designated in
53 said contract and shall be the designated individual or family's primary
54 residence. Contracts shall not be transferable between units and shall
55 not be transferable between recipients. A family or individual may

1 transfer their voucher to a different unit under a new contract pursuant
2 to this article;

3 4. that an owner shall not charge more than a reasonable rent as
4 defined in section six hundred six of this article.

5 § 612. Rental obligation. The monthly rental obligation for an indi-
6 vidual or family receiving housing assistance pursuant to the housing
7 access voucher program shall be the greater of:

8 1. thirty percent of the monthly adjusted income of the family or
9 individual; or

10 2. If the family or individual is receiving payments for welfare
11 assistance from a public agency and a part of those payments, adjusted
12 in accordance with the actual housing costs of the family, is specif-
13 ically designated by that agency to meet the housing costs of the fami-
14 ly, the portion of those payments that is so designated. These payments
15 include, but are not limited to any shelter assistance or housing
16 assistance administered by any federal, state or local agency.

17 § 613. Monthly assistance payment. 1. The amount of the monthly
18 assistance payment with respect to any dwelling unit shall be the
19 difference between the maximum monthly rent which the contract provides
20 that the owner is to receive for the unit and the rent the individual or
21 family is required to pay under section six hundred twelve of this arti-
22 cle.

23 2. The commissioner shall establish maximum rent levels for different
24 sized rentals in each rental area in a manner that promotes the use of
25 the program in all localities based on the fair market rent of the
26 rental area. Rental areas shall be determined by the commissioner. The
27 commissioner may rely on data or other information promulgated by any
28 other state or federal agency in determining the rental areas and fair
29 market rent.

30 3. The payment standard for each size of dwelling unit in a rental
31 area shall not be less than ninety percent and shall not exceed one
32 hundred twenty percent of the fair market rent established in section
33 six hundred six of this article for the same size of dwelling unit in
34 the same rental area, except that the commissioner shall not be required
35 as a result of a reduction in the fair market rent to reduce the payment
36 standard applied to a family continuing to reside in a unit for which
37 the family was receiving assistance under this article at the time the
38 fair market rent was reduced.

39 § 614. Inspection of units. Inspection of units shall be conducted
40 pursuant to the procedures and standards of the Federal Housing Choice
41 voucher program, as set forth in the applicable sections of Part 982 of
42 Title 24 of the Code of Federal Regulations.

43 § 615. Rent. 1. The rent for dwelling units for which a housing
44 assistance payment contract is established under this article shall be
45 reasonable in comparison with rents charged for comparable dwelling
46 units in the private, unassisted local market.

47 2. A housing access voucher local administrator (or other entity, as
48 provided in section six hundred seventeen of this article) may, at the
49 request of an individual or family receiving assistance under this arti-
50 cle, assist that individual or family in negotiating a reasonable rent
51 with a dwelling unit owner. A housing access voucher local administrator
52 (or other such entity) shall review the rent for a unit under consider-
53 ation by the individual or family (and all rent increases for units
54 under lease by the individual or family) to determine whether the rent
55 (or rent increase) requested by the owner is reasonable. If a housing
56 access voucher local administrator (or other such entity) determines

1 that the rent (or rent increase) for a dwelling unit is not reasonable,
2 the housing access voucher local administrator (or other such entity)
3 shall not make housing assistance payments to the owner under this
4 subdivision with respect to that unit.

5 3. If a dwelling unit for which a housing assistance payment contract
6 is established under this article is exempt from local rent control
7 provisions during the term of that contract, the rent for that unit
8 shall be reasonable in comparison with other units in the rental area
9 that are exempt from local rent control provisions.

10 4. Each housing access voucher local administrator shall make timely
11 payment of any amounts due to a dwelling unit owner under this section,
12 subject to appropriation of funds for this purpose.

13 § 616. Vacated units. If an assisted family vacates a dwelling unit
14 for which rental assistance is provided under a housing assistance
15 payment contract before the expiration of the term of the lease for the
16 unit, rental assistance pursuant to such contract may not be provided
17 for the unit after the month during which the unit was vacated.

18 § 617. Leasing of units owned by a housing access voucher local admin-
19 istrator. 1. If an eligible individual or family assisted under this
20 article leases a dwelling unit (other than a public housing dwelling
21 unit) that is owned by a housing access voucher local administrator
22 administering assistance to that individual or family under this
23 section, the commissioner shall require the unit of general local
24 government or another entity approved by the commissioner, to make
25 inspections required under section six hundred fourteen of this article
26 and rent determinations required under section six hundred fifteen of
27 this article. The housing access voucher local administrator shall be
28 responsible for any expenses of such inspections and determinations,
29 subject to the appropriation of funds for this purpose.

30 2. For purposes of this section, the term "owned by a housing access
31 voucher local administrator" means, with respect to a dwelling unit,
32 that the dwelling unit is in a project that is owned by such administra-
33 tor, by an entity wholly controlled by such administrator, or by a
34 limited liability company or limited partnership in which such adminis-
35 trator (or an entity wholly controlled by such administrator) holds a
36 controlling interest in the managing member or general partner. A dwell-
37 ing unit shall not be deemed to be owned by a housing access voucher
38 local administrator for purposes of this section because such adminis-
39 trator holds a fee interest as ground lessor in the property on which
40 the unit is situated, holds a security interest under a mortgage or deed
41 of trust on the unit, or holds a non-controlling interest in an entity
42 which owns the unit or in the managing member or general partner of an
43 entity which owns the unit.

44 § 618. Verification of income. The commissioner shall establish proce-
45 dures which are appropriate and necessary to assure that income data
46 provided to the housing access voucher local administrator and owners by
47 individuals and families applying for or receiving assistance under this
48 article is complete and accurate. In establishing such procedures, the
49 commissioner shall randomly, regularly, and periodically select a sample
50 of families to authorize the commissioner to obtain information on these
51 families for the purpose of income verification, or to allow those fami-
52 lies to provide such information themselves. Such information may
53 include, but is not limited to, data concerning unemployment compen-
54 sation and federal income taxation and data relating to benefits made
55 available under the social security act, 42 U.S.C. 301 et seq., the food
56 and nutrition act of 2008, 7 U.S.C. 2011 et seq., or title 38 of the

1 United States Code. Any such information received pursuant to this
2 section shall remain confidential and shall be used only for the purpose
3 of verifying incomes in order to determine eligibility of individuals
4 and families for benefits (and the amount of such benefits, if any)
5 under this article.

6 § 619. Division of an assisted family. 1. In those instances where a
7 family assisted under this article becomes divided into two otherwise
8 eligible individuals or families due to divorce, legal separation or the
9 division of the family, where such individuals or families cannot agree
10 as to which such individual or family should continue to receive the
11 assistance, and where there is no determination by a court, the housing
12 access voucher local administrator shall consider the following factors
13 to determine which of the individuals or families will continue to be
14 assisted:

15 (a) which of such individuals or families has custody of dependent
16 children;

17 (b) which such individual was the head of household when the voucher
18 was initially issued as listed on the initial application;

19 (c) the composition of such individuals and families and which such
20 family includes elderly or disabled members;

21 (d) whether domestic violence was involved in the breakup of such
22 family;

23 (e) which family members remain in the unit; and

24 (f) recommendations of social services professionals.

25 2. Documentation of these factors will be the responsibility of the
26 requesting parties. If documentation is not provided, the housing access
27 voucher local administrator will terminate assistance on the basis of
28 failure to provide information necessary for a recertification.

29 § 620. Maintenance of effort. Any funds made available pursuant to
30 this article shall not be used to offset or reduce the amount of funds
31 previously expended for the same or similar programs in a prior year in
32 any county or in the city of New York, but shall be used to supplement
33 any prior year's expenditures. The commissioner may grant an exception
34 to this requirement if any county, municipality, or other governmental
35 entity or public body can affirmatively show that such amount of funds
36 previously expended is in excess of the amount necessary to provide
37 assistance to all individuals and families within the area in which the
38 funds were previously expended who are homeless or facing an imminent
39 loss of housing.

40 § 621. Vouchers statewide. Notwithstanding section six hundred eleven
41 of this article, any voucher issued pursuant to this article may be used
42 for housing anywhere in the state. The commissioner shall inform voucher
43 holders that a voucher may be used anywhere in the state and, to the
44 extent practicable, the commissioner shall assist voucher holders in
45 finding housing in the area of their choice. Provided further, however,
46 that a voucher must be used in the county in which it was issued, or
47 within the city of New York, if the voucher was issued within the city
48 of New York, for no less than one year before it can be used in a
49 different jurisdiction, unless the issuing housing access voucher local
50 administrator grants a waiver, or the voucher holder, or a family member
51 thereof, is or has been the victim of domestic violence, dating
52 violence, sexual assault, or stalking.

53 § 622. Applicable codes. Housing eligible for participation in the
54 housing access voucher program shall comply with applicable state and
55 local health, housing, building and safety codes.

§ 623. Housing choice. 1. The commissioner shall administer the housing access voucher program under this article to promote housing choice for voucher holders. The commissioner shall affirmatively promote fair housing to the extent possible under this program.

2. Nothing in this article shall lessen or abridge any fair housing obligations promulgated by municipalities, localities, or any other applicable jurisdiction.

§ 2. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule, regulation, plan or guidance document necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date; provided further that any rule, regulation, plan or guidance document shall apply only to those counties located outside of the city of New York. The New York city department of housing preservation and development and the New York city housing authority, as applicable, shall promulgate or release rules, regulations, plans or guidance documents as necessary for the implementation of this act within the city of New York.

PART DD

Section 1. The public housing law is amended by adding a new section 20-a to read as follows:

§ 20-a. Homeownership opportunity connection program. 1. The commissioner shall establish a program to connect residents of communities with below average homeownership rates and not-for-profit housing organizations with homeownership and development opportunities. Such program shall be referred to as the "homeownership opportunity connection" program. Such program shall utilize all currently existing homeownership assistance programs and funding provided within the state's multi-year housing program. The division of housing and community renewal and the state of New York mortgage agency shall work with any other state agencies that provide such services to the targeted populations to promote the availability of such programs and to identify additional not-for-profit organizations to expand the areas where such programs are available.

(a) For potential homebuyers, the state of New York mortgage agency shall take such actions including, but not limited to, making publicly available on its website a singular and concise list containing:

(i) all available state and federal programs to assist with purchasing a home;

(ii) organizations who provide homeownership counseling which shall be updated annually; and

(iii) all participating lenders.

(b) For existing homeowners, the division of housing and community renewal shall take such actions including, but not limited to, making publicly available on its website a singular concise list containing:

(i) every program available to assist homeowners with making repairs; and

(ii) contact and application information for such programs which shall be updated annually.

(c) For existing owners of multi-family properties, the division of housing and community renewal shall take such actions including, but not limited to, making publicly available on its website a singular and concise list containing:

(i) every program available to assist owners with making repairs; and

1 (ii) contact and application information for such programs which shall
2 be updated annually.

3 (d) For potential developers of multi-family properties, the division
4 of housing and community renewal shall take such actions including, but
5 not limited to, making publicly available on its website a singular and
6 concise list containing:

7 (i) every program where funding is currently available to assist with
8 development, including the term sheets and how to apply to such
9 programs, which shall be updated when the availability of funding chang-
10 es; and

11 (ii) contact and application information for such programs which shall
12 be updated annually.

13 (e) The division of housing and community renewal, in consultation
14 with the office of temporary and disability assistance, shall take such
15 actions including, but not limited to, making publicly available on its
16 website a singular and concise list containing:

17 (i) every program available to assist individuals currently experienc-
18 ing homelessness or individuals at risk of homelessness, including but
19 not limited to, the New York state rental subsidy program, and any other
20 rental supplement program as authorized by a local social services
21 district; and

22 (ii) contact and application information for such programs which shall
23 be updated annually.

24 2. The commissioner shall identify such funds as necessary which may
25 be used to subsidize the homeownership opportunity connection program.
26 The commissioner shall further identify any not-for-profit housing
27 organizations to provide services to communities with below average
28 homeownership rates. The commissioner may, to the extent practicable,
29 allocate funds to such organizations for the explicit purpose of using
30 their membership or staff to directly seek out and notify residents
31 about the homeownership opportunity connection program and the programs
32 offered thereunder.

33 3. The commissioner's outreach efforts shall be made available to the
34 public by any means deemed appropriate by the division of housing and
35 community renewal including, but not limited to:

36 (a) social media, internet, radio, newspapers, and print advertising;

37 (b) brochures, billboards and posters;

38 (c) collaboration with schools of higher education;

39 (d) participation in, or organizing of, housing fairs;

40 (e) collaboration with community organizations or not-for-profit
41 organizations;

42 (f) collaboration with the department of state to train realtors on
43 available programs; and

44 (g) recruitment of individual volunteers to serve as visible, public
45 ambassadors to promote this message.

46 § 2. Subdivision 1 of section 20 of the public housing law, as amended
47 by section 2 of part L of chapter 36 of the laws of 2019, is amended to
48 read as follows:

49 1. The commissioner shall, on or before October first in each year,
50 beginning in nineteen hundred ninety, submit **and make publicly available**
51 **on its website** one or more reports to the governor, the temporary presi-
52 dent of the senate, the speaker of the assembly, the minority leader of
53 the senate and minority leader of the assembly on the activity and
54 implementation of the state housing assistance programs for the previous
55 fiscal year. In addition, the commissioner shall, on or before February
56 first in each year, beginning in nineteen hundred ninety-one, submit an

1 interim report which contains, in tabular format only, the non-narrative
2 data compiled through November thirtieth of each year. The commissioner
3 shall submit on or before February first, nineteen hundred ninety a
4 report for the fiscal year commencing April first, nineteen hundred
5 eighty-eight and the most up to date non-narrative data, in tabular
6 format only, but in no event less than the data compiled through Septem-
7 ber thirtieth, nineteen hundred eighty-nine. All such reports shall
8 include, but not be limited to the low income housing trust fund
9 program, the affordable home ownership development program, the urban
10 initiatives program, the rural area revitalization program, the rural
11 rental assistance program, the homeless housing and assistance program,
12 the housing opportunities program for the elderly, the state of New York
13 mortgage agency forward commitment and mortgage insurance programs, the
14 housing finance agency secured loan rental program, the turnkey/enhanced
15 housing trust fund program, the special needs housing program, the
16 permanent housing for the homeless program, the infrastructure develop-
17 ment demonstration program [and], the mobile home cooperative fund
18 program, the New York access to home program, the New York main street
19 program, the rural and urban community investment program, the New York
20 access to homes for heroes program, and the housing our neighbors with
21 dignity program. For the purpose of producing such report or reports,
22 the commissioner shall be authorized to rely on information provided by
23 each administering agency or authority. Such report or reports shall, to
24 the extent applicable to a specific program, include but not be limited
25 to: (i) a narrative for each program reported describing the program
26 purpose, eligible applicants, eligible areas, income population to be
27 served, and limitations on funding; (ii) for each eligible applicant
28 receiving funding under the Housing Trust Fund or the Affordable Home
29 Ownership Development programs during the year specified herein, such
30 applicant's name and address, a description of the applicant's contract
31 amount, a narrative description of the specific activities performed by
32 such applicant, and the income levels of the occupants to be served by
33 the units all as proposed by the applicant at the time the contract is
34 awarded; (iii) a description of the distribution of funds for each cate-
35 gory of project funded under each program; (iv) the number of units or
36 beds under award, under contract, under construction and completed based
37 on a change in project status during the year for each program; (v) the
38 number of units or beds assisted during the year under each program;
39 (vi) the amount and type of assistance provided for such units or beds
40 placed under contract; (vii) based on total project costs, the number of
41 units or beds under contract and assisted through new construction,
42 substantial rehabilitation, moderate rehabilitation, improvements to
43 existing units or beds, and through acquisition only for each program;
44 (viii) for the number of units or beds under contract assisted through
45 new construction, substantial rehabilitation, moderate rehabilitation,
46 improvements to existing units or beds, and through acquisition only,
47 the level of state assistance expressed as a percentage of total project
48 cost; (ix) for those units and beds under contract a calculation of the
49 amount of non-state funds provided expressed as a percentage of total
50 project cost; (x) the number of units or beds completed and under award,
51 under contract and under construction for each program based on the
52 current program pipeline; (xi) for units or beds for which mortgage
53 assistance was provided by the state of New York mortgage agency, the
54 number of existing and newly constructed units; and (xii) a list, by
55 program, of units or beds assisted within each county. To the extent
56 that any law establishing or appropriating funds for any of the afore-

1 mentioned programs requires the commissioner to produce a report
2 containing data substantially similar to that required herein, this
3 report shall be deemed to satisfy such other requirements.

4 § 3. Section 2419 of the public authorities law, as amended by chapter
5 555 of the laws of 1989, is amended to read as follows:

6 § 2419. Annual report. The agency shall submit to the governor, the
7 ~~[chairman]~~ chairperson of the senate finance committee, the ~~[chairman]~~
8 chairperson of the assembly ways and means committee, the comptroller
9 ~~[and]~~, the director of the budget, and make publicly available on its
10 website within six months after the end of its fiscal year, a complete
11 and detailed report setting forth: (1) its operations and accomplish-
12 ments; (2) its receipts and expenditures during such fiscal year in
13 accordance with the categories or classifications established by the
14 agency for its operating and capital outlay purposes, including a list-
15 ing of all private consultants engaged by the agency on a contract basis
16 and a statement of the total amount paid to each such private consult-
17 ant; (3) its assets and liabilities at the end of its fiscal year,
18 including a schedule of its mortgages and the status of reserve, special
19 or other funds; (4) a schedule of its bonds and notes outstanding at the
20 end of its fiscal year, together with a statement of the amounts
21 redeemed and incurred during such fiscal year; (5) a schedule of mort-
22 gages which have been insured during such year and mortgages for which
23 there exists an outstanding commitment to insure and the status of the
24 mortgage insurance fund and other funds established by the corporation;
25 and with respect to the agency's fiscal years ending after nineteen
26 hundred eighty-five; (6) a breakdown by region (as defined in subdivi-
27 sion nine of section two thousand four hundred twenty-six of this title)
28 of the average income of recipients of SONYMA mortgage loans for such
29 fiscal year, stated separately for SONYMA's tax exempt and blended
30 program and SONYMA's taxable program; (7) a breakdown by region of the
31 income distribution of recipients of SONYMA mortgage loans for such
32 fiscal year, stated separately for SONYMA's tax exempt and blended
33 program and SONYMA's taxable program; ~~[and]~~ (8) a breakdown by region of
34 the average purchase price of structures acquired with SONYMA mortgage
35 loans for such fiscal year, stated separately for SONYMA's tax exempt
36 and blended program and SONYMA's taxable program; and (9) activities
37 undertaken to promote the operations of the agency including where its
38 promoted and any organizations the agency partners with for such activ-
39 ities. With respect to the schedule mentioned in item five hereof, such
40 schedule shall be submitted within ninety days after the end of its
41 fiscal year and shall be submitted to the temporary president of the
42 senate and speaker of the assembly in addition to the aforementioned
43 officers.

44 § 4. This act shall take effect on the thirtieth day after it shall
45 have become a law. Effective immediately, the addition, amendment and/or
46 repeal of any rule or regulation necessary for the implementation of
47 this act on its effective date are authorized to be made and completed
48 on or before such effective date.

49 PART EE

50 Section 1. Paragraph (e) of subdivision 2 of section 209 of the social
51 services law, as amended by section 2 of part H of chapter 56 of the
52 laws of 2024, is amended to read as follows:

53 (e) On and after January first, two thousand ~~[twenty-four]~~
54 twenty-five, (i) for an eligible individual receiving enhanced residen-

1 tial care, [~~\$1,637.00~~] \$1,768.00; and (ii) for an eligible couple
2 receiving enhanced residential care, two times the amount set forth in
3 subparagraph (i) of this paragraph.
4 § 2. This act shall take effect immediately.

5 PART FF

6 Section 1. Subdivisions 1 and 3 of section 592 of the labor law, as
7 amended by chapter 20 of the laws of 2020, are amended to read as
8 follows:

9 1. Industrial controversy. (a) The accumulation of benefit rights by a
10 claimant shall be suspended during a period of [~~two consecutive weeks~~]
11 one week beginning with the day after such claimant lost [~~his or her~~]
12 their employment because of a strike or other industrial controversy
13 except for lockouts, including concerted activity not authorized or
14 sanctioned by the recognized or certified bargaining agent of the claim-
15 ant, and other concerted activity conducted in violation of any existing
16 collective bargaining agreement, in the establishment in which [~~he or~~
17 ~~she~~] such claimant was employed, except that benefit rights may be accu-
18 mulated before the expiration of such [~~two~~] one week period beginning
19 with the day after such strike or other industrial controversy was
20 terminated.

21 (b) Benefits shall not be suspended under this section if:

22 (i) The employer hires a permanent replacement worker for the employ-
23 ee's position. A replacement worker shall be presumed to be permanent
24 unless the employer certifies in writing that the employee will be able
25 to return to [~~his or her~~] such employee's prior position upon conclusion
26 of the strike, in the event the strike terminates prior to the conclu-
27 sion of the employee's eligibility for benefit rights under this chap-
28 ter. In the event the employer does not permit such return after such
29 certification, the employee shall be entitled to recover any benefits
30 lost as a result of the [~~two~~] one week suspension of benefits, and the
31 department may impose a penalty upon the employer of up to seven hundred
32 fifty dollars per employee per week of benefits lost. The penalty
33 collected shall be paid into the unemployment insurance control fund
34 established pursuant to section five hundred fifty-two-b of this arti-
35 cle; or

36 (ii) The commissioner determines that the claimant:

37 (A) is not employed by an employer that is involved in the industrial
38 controversy that caused [~~his or her~~] such claimant's unemployment and is
39 not participating in the industrial controversy; or

40 (B) is not in a bargaining unit involved in the industrial controversy
41 that caused [~~his or her~~] such claimant's unemployment and is not partic-
42 ipating in the industrial controversy.

43 3. Terms of suspension. [~~No~~] The waiting period [~~may~~] and suspension
44 period shall be served [~~during a suspension period~~] concurrently.

45 The suspension of accumulation of benefit rights shall not be termi-
46 nated by subsequent employment of the claimant irrespective of when the
47 claim is filed except as provided in subdivision one of this section and
48 shall not be confined to a single benefit year.

49 A "week" as used in subdivision one of this section means any seven
50 consecutive calendar days.

51 § 2. This act shall take effect immediately.

52 PART GG

Section 1. Paragraph b of subdivision 2 of section 679-e of the education law, as amended by section 1 of part VV of chapter 56 of the laws of 2009, is amended to read as follows:

b. "Eligible period" means the ~~[six-year]~~ eight-year period after completion of the ~~[third]~~ second year and before the commencement of the ~~[tenth]~~ eleventh year of employment as an eligible attorney. For purposes of this section, all periods of time during which an admitted attorney was employed as an eligible attorney and all periods of time during which a law school graduate awaiting admission to the New York state bar was employed by a prosecuting ~~[or]~~ agency, criminal defense agency, or non-profit indigent civil legal services corporation as permitted by section four hundred eighty-four of the judiciary law shall be combined.

§ 2. Paragraph d of subdivision 2 of section 679-e of the education law, as amended by section 1 of part VV of chapter 56 of the laws of 2009, is amended to read as follows:

d. "Year of qualified service" means the twelve month period measured from the anniversary of the attorney's employment as an eligible attorney, or as a law school graduate awaiting admission to the New York state bar employed by a prosecuting ~~[or]~~ agency, criminal defense agency, or non-profit indigent civil legal services corporation as permitted by section four hundred eighty-four of the judiciary law, adjusted for any interruption in employment. Any period of temporary leave from service taken by an eligible attorney shall not be considered in the calculation of qualified service. However, the period of temporary leave shall be considered an interruption in employment and the calculation of the time period of qualified service shall recommence when the eligible attorney returns to full time service.

§ 3. Paragraph a of subdivision 3 of section 679-e of the education law, as amended by section 1 of part VV of chapter 56 of the laws of 2009, is amended to read as follows:

a. An eligible attorney may apply for reimbursement after the completion of each year of qualified service provided however that reimbursement to each eligible attorney shall not exceed ~~[three thousand four hundred]~~ eight thousand dollars, per qualifying year, subject to appropriations available therefor. The president may establish: (i) an application deadline and (ii) a method of selecting recipients if in any given year there are insufficient funds to cover the needs of all the applicants. Awards shall be within the amounts appropriated for such purpose and based on availability of funds.

§ 4. Paragraph b of subdivision 3 of section 679-e of the education law, as amended by section 1 of part VV of chapter 56 of the laws of 2009, is amended to read as follows:

b. An eligible attorney may apply after the completion of the ~~[fourth]~~ second year of qualified service, and annually thereafter after the completion of the ~~[fifth]~~ third through ~~[ninth]~~ eleventh year of qualified service, and may seek a student loan expense grant for only the previous year of qualified service within the time periods prescribed by the president. An eligible attorney may receive student loan expense grants for no more than ~~[six]~~ eight years of qualified service within an eligible period.

§ 5. This act shall take effect April 1, 2026. Nothing in this act shall be implemented in a manner that diminishes the current award or status of eligible attorneys currently participating in the program.

1 Section 1. Subdivision 1 of section 669-h of the education law, as
2 amended by section 1 of part T of chapter 56 of the laws of 2018, is
3 amended to read as follows:

4 1. Eligibility. An excelsior scholarship award shall be made to an
5 applicant who: (a) is matriculated in an approved program leading to an
6 undergraduate degree at a New York state public institution of higher
7 education; (b) if enrolled in (i) a public institution of higher educa-
8 tion prior to application, has completed at least thirty combined cred-
9 its per year following the student's start date, or its equivalent,
10 applicable to ~~[his or her]~~ the applicant's program or programs of study
11 or (ii) an institution of higher education prior to application, has
12 completed at least thirty combined credits per year following the
13 student's start date, or its equivalent, applicable to ~~[his or her]~~ the
14 applicant's program or programs of study and which were accepted upon
15 transfer to a public institution of higher education; (c) enrolls in at
16 least twelve credits per semester and completes at least thirty combined
17 credits per year following the student's start date, or its equivalent,
18 applicable to ~~[his or her]~~ the applicant's program or programs of study
19 except in limited circumstances as prescribed by the corporation in
20 regulation. Notwithstanding, in the student's last semester, the
21 student may take at least one course needed to meet ~~[his or her]~~ the
22 applicant's graduation requirements and enroll in and complete at least
23 twelve credit hours or its equivalent. For students who are disabled as
24 defined by the Americans With Disabilities Act of 1990, 42 USC 12101,
25 the corporation shall prescribe rules and regulations that allow appli-
26 cants who are disabled to be eligible for an award pursuant to this
27 section based on modified criteria; (d) has an adjusted gross income for
28 the qualifying year, as such terms are defined in this subdivision,
29 equal to or less than: (i) one hundred thousand dollars for recipients
30 receiving an award in the two thousand seventeen--two thousand eighteen
31 academic year; (ii) one hundred ten thousand dollars for recipients
32 receiving an award in the two thousand eighteen--two thousand nineteen
33 academic year; ~~[and]~~ (iii) one hundred twenty-five thousand dollars for
34 recipients receiving an award in the two thousand nineteen--two thousand
35 twenty through two thousand twenty-four--two thousand twenty-five
36 academic [year and thereafter] years; and (iv) one hundred fifty thou-
37 sand dollars for recipients receiving an award in the two thousand twen-
38 ty-five--two thousand twenty-six academic year and thereafter; and (e)
39 complies with the applicable provisions of this article and all require-
40 ments promulgated by the corporation for the administration of the
41 program. Adjusted gross income shall be the total of the combined
42 adjusted gross income of the applicant and the applicant's parents or
43 the applicant and the applicant's spouse, if married. Qualifying year
44 shall be the adjusted gross income as reported on the federal income tax
45 return, or as otherwise obtained by the corporation, for the calendar
46 year coinciding with the tax year established by the U.S. department of
47 education to qualify applicants for federal student financial aid
48 programs authorized by Title IV of the Higher Education Act of nineteen
49 hundred sixty-five, as amended, for the school year in which application
50 for assistance is made. Provided, however, if an applicant demonstrates
51 to the corporation that there has been a change in such applicant's
52 adjusted gross income in the year(s) subsequent to the qualifying year
53 which would qualify such applicant for an award, the corporation shall
54 review and make a determination as to whether such applicant meets the
55 requirement set forth in paragraph (d) of this subdivision based on such
56 year. Provided, further that such change was caused by the death, perma-

nent and total physical or mental disability, divorce, or separation by judicial decree or pursuant to an agreement of separation which is filed with a court of competent jurisdiction of any person whose income was required to be used to compute the applicant's total adjusted gross income.

§ 2. Subparagraph (ii) of paragraph a of subdivision 3 of section 667 of the education law, as amended by section 1 of part X of chapter 56 of the laws of 2024, is amended to read as follows:

(ii) Except for students as noted in subparagraph (iii) of this paragraph, the base amount as determined from subparagraph (i) of this paragraph, shall be reduced in relation to income as follows:

Amount of income	Schedule of reduction of base amount
(A) Less than seven thousand dollars	None
(B) Seven thousand dollars or more, but less than eleven thousand dollars	Seven per centum of excess over seven thousand dollars
(C) Eleven thousand dollars or more, but less than eighteen thousand dollars	Two hundred eighty dollars plus ten per centum of excess over eleven thousand dollars
(D) Eighteen thousand dollars or more, but not more than one hundred twenty-five <u>fifty</u> thousand dollars	Nine hundred eighty dollars plus twelve per centum of excess over eighteen thousand dollars

§ 3. This act shall take effect immediately and shall apply to academic years 2025-2026 and thereafter.

PART II

Section 1. The opening paragraph of subdivision 10 of section 590 of the labor law, as amended by chapter 734 of the laws of 2004, is amended to read as follows:

Benefits based on professional employment with educational institutions, including the state university of New York, the city university of New York and any public community colleges. If a claimant was employed in an instructional, research, or principal administrative capacity by an institution of education, including the state university of New York, the city university of New York and any public community colleges, or performed services in such an institution in such capacity while employed by an educational service agency, the following shall apply to any week commencing during the period between two successive academic years or terms, or during a similar period between two regular but not successive terms when the contract provides therefor instead, provided the claimant has a contract to perform services, or there is a reasonable assurance that the claimant will perform services, ~~[services]~~ in such capacity for any such institution or institutions for both of such academic years or such terms, and to any week commencing during an established and customary vacation period or holiday recess, not between such academic terms or years, provided the claimant performed services for such institution immediately before such vacation period or holiday recess and there is a reasonable assurance that the claimant will perform any services described in this subdivision or subdivision eleven

1 of this section in the period immediately following such vacation period
2 or holiday recess:

3 § 2. Subdivision 11 of section 590 of the labor law is REPEALED and a
4 new subdivision 11 is added to read as follows:

5 11. (a) For purposes of subdivision ten of this section, a "contract
6 to perform services" shall refer only to an enforceable, non-contingent
7 agreement that provides for compensation: for the entire academic year;
8 or on an annual basis, provided, however, that the contract terms
9 describing compensation need not be expressed specifically as an annual
10 salary. A "contract to perform services" must satisfy all of the
11 following conditions:

12 (1) The educational institution has made a written, oral or implied
13 offer of employment, which must be genuine, to the claimant for either
14 the second academic year or term or for the period following an estab-
15 lished or customary vacation period or holiday recess;

16 (2) Such offer was made by an employee of the educational institution
17 with authority to make such offer;

18 (3) Such offer is for services in the same capacity as the services
19 the claimant performed for the educational institution in the prior
20 academic year or term or in the period before an established or custom-
21 ary vacation period or holiday recess; and

22 (4) The wages or salary in such offer are in an amount not less than
23 ninety percent of the amount paid to the claimant during the first
24 academic year or term or during the period before an established or
25 customary vacation period or holiday recess.

26 (b) For purposes of subdivision ten of this section, a determination
27 that there is a "reasonable assurance" shall require meeting all of the
28 requirements set forth in subparagraphs one through four of paragraph
29 (a) of this subdivision and the following conditions:

30 (1) Such offer is not contingent on factors within the control of such
31 educational institution including, but not limited to, course program-
32 ming, allocation of available funding, program modifications, or facili-
33 ty availability; and

34 (2) Based on the totality of the circumstances, it is highly probable
35 that there is a job available for the claimant in the same capacity
36 during the second academic year or term or during the period following
37 an established or customary vacation period or holiday recess, includ-
38 ing, but not limited to, availability of funding, enrollment levels, the
39 claimant's level of seniority, budgeting and assignment practices at the
40 educational institution, the number of offers made in relation to the
41 number of potential assignments, the period of student registration, and
42 any other contingencies in the offer. When considering whether funding
43 shall be available, the following criteria shall be considered: (i) the
44 history of the educational institution's funding, and the likelihood
45 that the educational institution will receive such funding, for a
46 specific course; and (ii) the claimant's likelihood of receiving an
47 assignment.

48 (c) Reasonable assurance shall be determined on a case-by-case basis
49 by the total weight of evidence rather than the existence of any one
50 factor. Primary weight shall be given to the contingent nature of an
51 offer of employment based on enrollment, funding and program changes;
52 provided, however, that in any unemployment insurance proceeding, a
53 written letter from an educational institution to a claimant which makes
54 employment conditional shall not be prima facie evidence of reasonable
55 assurance to be used to deny a claim for unemployment. The educational
56 institution shall supply specific documentation to support its objection

1 that it has provided a contract to perform services and/or reasonable
2 assurance. If the educational institution fails to supply such specific
3 documentation, the objection shall be deemed invalid.

4 (d) (1) The provisions of subdivision ten of this section shall not be
5 interpreted, implemented, or otherwise construed in any way to apply to
6 services in a nonprofessional capacity.

7 (2) For the purposes of this subdivision and subdivision ten of this
8 section:

9 (i) "Professional capacity" shall strictly apply to services performed
10 in an instructional, research, or principal administrative capacity with
11 educational institutions, including the state university of New York,
12 the city university of New York and any public community college.

13 (ii) "Services in a nonprofessional capacity" shall apply to services
14 in any capacity other than a professional capacity and encompasses any
15 services other than an instructional, research, or principal administra-
16 tive capacity, regardless of the legal or educational requirements to
17 perform such services.

18 § 3. This act shall take effect immediately.

19 PART JJ

20 Section 1. Section 410-w of the social services law is amended by
21 adding a new subdivision 11 to read as follows:

22 11. Notwithstanding any other provision of law, rule or regulation to
23 the contrary, there shall be no minimum earnings requirement for parents
24 and caretakers who are otherwise eligible for child care assistance
25 pursuant to this section to receive such assistance.

26 § 2. This act shall take effect immediately.

27 PART KK

28 Section 1. Section 410-x of the social services law is amended by
29 adding a new subdivision 5-a to read as follows:

30 5-a. (a) For each group for which the office of children and family
31 services determines a separate payment rate pursuant to subdivision four
32 of this section, and at the same frequency, such office shall utilize a
33 cost estimation model to determine the actual cost providers incur when
34 providing child care. The cost estimation model shall identify and take
35 into account cost drivers including but not limited to employee salary
36 and benefits, enrollment levels, facility costs and compliance with
37 statutory and regulatory requirements. Where a quality rating system or
38 any quality indicators are being utilized, the cost estimation model
39 shall also take into account the cost of providing services at each
40 level of quality.

41 (b) In developing such model the office of children and family
42 services shall consult with stakeholders including, but not limited to,
43 representatives of child care resource and referral agencies, child care
44 providers and any state advisory council established pursuant to 42
45 U.S.C.S. § 9831 et. seq., as amended. The cost estimation model shall be
46 statistically valid, using complete and current data and rigorous
47 collection methods.

48 § 2. Section 410-z of the social services law, as added by section 52
49 of part B of chapter 436 of the laws of 1997, is amended to read as
50 follows:

51 § 410-z. Reporting requirements. 1. Each social services district
52 shall collect and submit to the ~~[department]~~ office of children and

1 family services, in such form and at such times as specified by the
2 ~~[department]~~ office of children and family services, such data and
3 information regarding child care assistance provided under the block
4 grant as the ~~[department]~~ office of children and family services may
5 need to comply with federal reporting requirements.

6 2. The office of children and family services shall prepare a report
7 detailing the actual cost providers incur when providing child care in
8 each setting, as determined by the cost estimation model established in
9 paragraph (a) of subdivision five-a of section four hundred ten-x of
10 this title. The report shall detail cost data for each setting, age
11 group, care provided to children with special needs, and any other
12 grouping for which a separate cost estimation is conducted. Such data
13 shall include:

14 (a) the level of quality care as determined by a quality rating system
15 or any quality indicators utilized by the state;

16 (b) a description of the major cost drivers for providing care; and

17 (c) a comparison of the costs of child care for each grouping to the
18 market rate determined by the office of children and family services
19 pursuant to subdivision four of section four hundred ten-x of this
20 title.

21 The report shall be submitted to the governor, the speaker of the
22 assembly and the temporary president of the senate by June first, two
23 thousand twenty-seven. The office of children and family services shall
24 post the information contained in the report on its website.

25 § 3. This act shall take effect immediately.

26 PART LL

27 Section 1. Paragraph (b) of subdivision 5 of section 590 of the labor
28 law, as added by section 10 of part 0 of chapter 57 of the laws of 2013,
29 is amended to read as follows:

30 (b) Notwithstanding the foregoing, the maximum benefit amount shall
31 not be increased in accordance with the schedule set forth in paragraph
32 (a) of this subdivision in any year in which the balance of the fund is
33 determined by the commissioner to not have reached or exceeded thirty
34 percent of the average high cost multiple, as defined in 20 CFR Part 606
35 as the standard for receipt of interest-free federal loans, on at least
36 one day between April first and June thirtieth of the same calendar year
37 as the increase shall take effect. If, following such suspension of an
38 increase in the maximum benefit amount, the commissioner shall deter-
39 mine, on at least one day between April first and June thirtieth that
40 the balance of the fund is greater than such thirty percent average high
41 cost multiple, then the maximum benefit amount shall increase to the
42 ~~[percentage for the year previously]~~ rate scheduled to be established
43 pursuant to paragraph (a) of this subdivision had the increase not been
44 suspended and increased annually thereafter in accordance with the sche-
45 dule set forth in paragraph (a) of this subdivision. In no case shall
46 such suspension result in a reduction of the maximum benefit amount to
47 less than the amount provided in the most recent year.

48 § 2. This act shall take effect immediately.

49 PART MM

50 Section 1. Section 12 of chapter 19 of the laws of 2020, authorizing
51 the commissioner of education and the chancellor of the board of
52 regents, with the approval of the board of regents, to appoint monitors

1 to oversee the Hempstead union free school district, and authorizing the
2 commissioner of education to appoint a monitor to oversee the Hempstead
3 union free school district and establishing the powers and duties of
4 such monitor, is amended to read as follows:

5 § 12. This act shall take effect immediately; provided, however,
6 section one of this act shall take effect on the same date as a chapter
7 of the laws of 2019, authorizing the commissioner of education and the
8 chancellor of the board of regents, with the approval of the board of
9 regents, to appoint monitors to oversee the Hempstead union free school
10 district, as proposed in legislative bills numbers S.6559 and A.8403,
11 takes effect; and provided further, however sections two, three, four,
12 five, six, seven, eight, nine, ten and eleven of this act shall expire
13 and be deemed repealed June 30, ~~2025~~ 2030.

14 § 2. Section 12 of part C of chapter 56 of the laws of 2020, directing
15 the commissioner of education to appoint a monitor for the Rochester
16 city school district, establishing the powers and duties of such monitor
17 and certain other officers and relating to the apportionment of aid to
18 such school district, as amended by section 25 of part A of chapter 56
19 of the laws of 2023, is amended to read as follows:

20 § 12. This act shall take effect immediately, provided, however, that
21 sections two, three, four, five, six, seven, eight, nine and ten of this
22 act shall expire and be deemed repealed June 30, ~~2025~~ 2028; and
23 provided further, however that sections one and eleven of this act shall
24 expire and be deemed repealed June 30, 2049.

25 § 3. Section 13 of chapter 18 of the laws of 2020 authorizing the
26 commissioner of education to appoint a monitor to oversee the Wyandanch
27 union free school district and establishing the powers and duties of
28 such monitor; and authorizing deficit financing and an advance of aid
29 payments for the Wyandanch union free school district, is amended to
30 read as follows:

31 § 13. This act shall take effect immediately, provided however:

32 (a) Section one of this act shall take effect on the same date as a
33 chapter of the laws of 2019, authorizing the commissioner of education,
34 in consultation with the comptroller to appoint a monitor to oversee the
35 Wyandanch union free school district and establishing the powers and
36 duties of the monitor, as proposed in legislative bills numbers S.6588-A
37 and A.8422-A, takes effect.

38 (b) Sections three through ten of this act shall expire and be deemed
39 repealed June 30, ~~2025~~ 2030.

40 (c) Section eleven shall expire and be deemed repealed June 30 of the
41 last fiscal year during which serial bonds or bonds issued to refund
42 such serial bonds that are outstanding pursuant to such section of this
43 act, provided that the superintendent of the Wyandanch union free school
44 district shall notify the legislative bill drafting commission upon such
45 occurrence in order that the commission may maintain an accurate and
46 timely effective data base of the official text of the laws of the state
47 of New York in furtherance of effectuating the provisions of section 44
48 of the legislative law and section 70-b of the public officers law.

49 (d) Sections two and twelve of this act shall expire and be deemed
50 repealed June 30, 2049.

51 § 4. This act shall take effect immediately.

52 PART NN

53 Section 1. The social services law is amended by adding a new section
54 390-n to read as follows:

1 § 390-n. New York coalition for child care. 1. There shall be estab-
2 lished within the office of children and family services a New York
3 coalition for child care (hereinafter referred to as "the coalition")
4 for the purpose of researching and developing revenue-generating strate-
5 gies to fund future child care spending in the state to achieve
6 universal child care access.

7 2. The coalition shall be chaired by a representative of the executive
8 chamber and the commissioners of the office of children and family
9 services and the department of taxation and finance, or their designees.
10 Members of the coalition shall serve without compensation but may be
11 reimbursed for actual costs incurred for participation on such coali-
12 tion. Ensuring adequate geographic, racial, and ethnic representation,
13 members of the coalition shall be appointed by the governor and
14 comprised as follows:

15 (a) two individuals shall be appointed upon the recommendation of the
16 speaker of the assembly, one of whom shall be a representative from a
17 nonprofit child advocacy organization and one of whom shall be a finan-
18 cial expert specializing in public finance or taxation;

19 (b) two individuals shall be appointed upon the recommendation of the
20 temporary president of the senate, one of whom shall be a representative
21 from business or industry that provides child care benefits to employees
22 and one of whom shall be a financial expert specializing in public
23 finance or taxation;

24 (c) one individual shall be appointed upon the recommendation of the
25 minority leader of the assembly;

26 (d) one individual shall be appointed upon the recommendation of the
27 minority leader of the senate;

28 (e) two representatives of a child care resource and referral agency,
29 as defined under section four hundred ten-p of this article;

30 (f) three representatives of home-based child care providers;

31 (g) three representatives of center-based child care providers;

32 (h) two representatives from the business community;

33 (i) two representatives from labor unions that represent child care
34 providers. Representation shall be consistent with the geographic
35 diversity of the state, and shall include at least one representative
36 from the North Country region; and

37 (j) at least one representative from each of the following entities:

38 (i) the office of temporary and disability assistance;

39 (ii) the council on children and families;

40 (iii) the department of taxation and finance;

41 (iv) a regional economic development council;

42 (v) the state university of New York or the city university of New
43 York;

44 (vi) the state education department;

45 (vii) the early childhood advisory council;

46 (viii) a social services district or county government or an entity
47 that advocates on behalf of social services or county governments; and

48 (ix) a non-profit child care advocacy organization.

49 3. The coalition shall:

50 (a) research and evaluate potential revenue-generating mechanisms to
51 support sustainable child care funding to support universal child care
52 access, including but not limited to public-private partnerships, dedi-
53 cated tax revenues, employer contributions, and other innovative funding
54 sources;

55 (b) analyze existing child care funding streams and assess their effi-
56 ciency and effectiveness in meeting the needs of families and providers

1 throughout the state, identify gaps in current funding structures that
2 hinder progress toward universal child care, and evaluate how existing
3 resources can be optimized or expanded to develop a comprehensive, long-
4 term funding strategy for universal child care;

5 (c) solicit input from stakeholders, including child care providers,
6 businesses, labor organizations, and advocacy groups, to ensure a broad
7 and diverse range of perspectives;

8 (d) identify best practices from other jurisdictions that have
9 successfully implemented revenue-generating models for child care fund-
10 ing;

11 (e) develop recommendations and propose legislative or regulatory
12 changes necessary to implement sustainable funding mechanisms for child
13 care in New York state;

14 (f) examine workforce issues related to the child care sector, includ-
15 ing staffing shortages, retention challenges, and barriers to workforce
16 expansion;

17 (g) identify and recommend funding strategies to support workforce
18 development, training programs, and initiatives to increase the number
19 of qualified child care givers; and

20 (h) conduct any other activities the coalition deems necessary to
21 fulfill its mandate.

22 4. (a) The coalition shall report its findings and recommendations in
23 accordance with subdivision three of this section to the governor, the
24 speaker of the assembly, and the temporary president of the senate no
25 later than December fifteenth, two thousand twenty-five.

26 (b) The coalition shall also report on the implementation of any
27 recommendations that result from its findings. Such additional reports
28 shall be provided annually, beginning July first, two thousand twenty-
29 seven.

30 § 2. This act shall take effect April 1, 2025 and shall remain in
31 effect until the submission of the New York coalition for child care's
32 final report, when it shall be deemed repealed. The commissioner of the
33 office of children and family services shall notify the legislative bill
34 drafting commission upon the submission of the report required in subdivi-
35 sion 4 of section 390-n of the social services law as added by section
36 one of this act in order that the commission may maintain an accurate
37 and timely effective data base of the official text of the laws of the
38 state of New York in furtherance of effectuating the provisions of
39 section 44 of the legislative law and section 70-b of the public offi-
40 cers law.

41 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
42 sion, section or part of this act shall be adjudged by any court of
43 competent jurisdiction to be invalid, such judgment shall not affect,
44 impair, or invalidate the remainder thereof, but shall be confined in
45 its operation to the clause, sentence, paragraph, subdivision, section
46 or part thereof directly involved in the controversy in which such judg-
47 ment shall have been rendered. It is hereby declared to be the intent of
48 the legislature that this act would have been enacted even if such
49 invalid provisions had not been included herein.

50 § 3. This act shall take effect immediately provided, however, that
51 the applicable effective date of Parts A through NN of this act shall be
52 as specifically set forth in the last section of such Parts.